

VILLAGE OF GRAYSLAKE

ORDINANCE NO. 2025-0-21

AN ORDINANCE AMENDING ORDINANCE NO. 2009-0-26, FURTHER
AMENDING AND MODIFYING THE TERMS OF THE “AGREEMENT
OF CONDITIONS AND SPECIFICATIONS FOR A SPECIAL USE PERMIT
FOR CORNERSTONE PROPERTY (GENERALLY LOCATED ALONG
ILLINOIS ROUTE 83 AND PETERSON ROAD)”

WHEREAS, the Village of Grayslake (the “**Village**”) has previously adopted Ordinance No. 2009-0-26, being “An Ordinance Granting a Special Use Permit for a Planned Unit Development and Approving a General Development Plan for the Cornerstone Property (the “**Cornerstone Property**”) (Generally Located Along Illinois Route 83 And Peterson Road)” (the “**Original SUP Ordinance**”); and

WHEREAS, the Original SUP Ordinance approved a Master Plan for the Cornerstone Property that was comprised of several elements, including a General Development Plan referred to as the “**Land Use Plan**” that was part of Exhibit B to the Original SUP Ordinance and also Exhibit B-1 of the Original SUP Agreement (as hereinafter defined); and

WHEREAS, as part of the Original SUP Ordinance, the Village entered into a certain “Agreement of Conditions and Specifications for a Special Use Permit for Cornerstone Property (Generally Located Along Illinois Route 83 and Peterson Road),” dated 2 March 2010 (the “**Original SUP Agreement**”) with Lake County Land Holdings, L.L.C. (the “**Owner**”) relating to the Cornerstone Property; and

WHEREAS, pursuant to Ordinance No. 2019-0-16 (the “**2019 Ordinance**”), the President and Board of Trustees of the Village (the “**Village Board**”) approved a “First Amendment to Agreement of Conditions and Specifications for a Special Use Permit for Cornerstone Property (Generally Located Along Illinois Route 83 and Peterson Road)” (the “**First Amendment to SUP Agreement**”), which modified the designation of a parcel in the Land Use Plan as incorporated into the Original SUP Agreement (the Original SUP Agreement and the SUP First Amendment shall hereinafter be collectively referred to as the “**Amended SUP Agreement**,” and the Land

Use Plan as amended by the SUP First Amendment shall hereinafter be collectively referred to as the “**Amended Land Use Plan**”); and

WHEREAS, pursuant to Ordinance 2021-0-33 (the “**2021 Ordinance**”), the Village Board approved a “Second Amendment to the Agreement of Conditions and Specifications for a Special Use Permit for Cornerstone Property (Generally Located Along Illinois Route 83 and Peterson Road)” (the “**Second Amendment to SUP Agreement**”), which modified the designation of a parcel in the Amended Land Use Plan as incorporated into the Amended SUP Agreement (the Amended SUP Agreement and the SUP Second Amendment shall hereinafter be collectively referred to as the “**Updated SUP Agreement**” and the Amended Land Use Plan as amended by the SUP Second Amendment shall hereinafter be collectively referred to as the “**Updated Land Use Plan**”); and

WHEREAS, pursuant to Ordinance 2024-0-37 (the “**2024 Ordinance**”), the Village Board approved a “Third Amendment to the Agreement of Conditions and Specifications for a Special Use Permit for Cornerstone Property (Generally Located Along Illinois Route 83 and Peterson Road)” (the “**Third Amendment to SUP Agreement**”), which modified the Updated Land Use Plan as incorporated into the Updated SUP Agreement by incorporating a revised plan only for certain real property consisting of approximately 135 acres of the Cornerstone Property located immediately north of the Medline facility at 2200 Cornerstone Parkway, Grayslake, IL 60030 (the “**T5 Campus Property**”) into the Updated Land Use Plan. The Third Amendment to SUP Agreement is an agreement between T5@CHICAGO IV LP and the Village of Grayslake for the development of a data center campus on the T5 Campus Property only. The SUP Third Amendment shall hereinafter be independently referred to as the “**Campus Agreement**” and the revised plan replacing the General Development Plan reflected in the Updated Land Use Plan for the T5 Campus Property only as amended by the SUP Third Amendment shall hereinafter be independently referred to as the “**Campus Plan**”; and

WHEREAS, pursuant to Ordinance 2025-0-05 (the “**First 2025 Ordinance**”), the Village Board approved a “Fourth Amendment to the Agreement of Conditions and Specifications for a Special Use Permit for Cornerstone Property (Generally Located Along Illinois Route 83 and Peterson Road)” (the “**Fourth Amendment to SUP Agreement**”), which further modified the Updated Land Use Plan as incorporated into the Updated SUP Agreement by incorporating a revised plan only for certain real property consisting of approximately 31.5 acres of the Cornerstone Property located immediately east of Cornerstone Parkway, Grayslake, IL 60030 (the “**Second T5 Campus Property**”) into the Updated Land Use Plan. The Fourth Amendment to SUP Agreement is an agreement between T5@CHICAGO IV LP and the Village of Grayslake for the development of a data center campus on the Second T5 Campus Property only. The SUP Fourth Amendment shall hereinafter be independently referred to as the “**Second Campus Agreement**” and the revised plan replacing the General Development Plan reflected in the Updated Land Use Plan for the Second T5 Campus Property only as amended by the SUP Fourth Amendment shall hereinafter be independently referred to as the “**Second Campus Plan**”; and

WHEREAS, T5@CHICAGO IV LP is the contract purchaser of additional certain real property consisting of approximately 184 acres of the Cornerstone Property, located at the southwest corner of IL Route 83 and Peterson Road, Grayslake, IL 60030 and legally described in **Exhibit A** to this Ordinance (“**Subject Property**”); and

WHEREAS, T5@CHICAGO IV LP as the contract purchaser of the Subject Property shall hereinafter be referred to as the “**Developer**”; and

WHEREAS, Developer has made application for further changes to the Updated Land Use Plan in accordance with the notice, hearing, and approval procedures for a General Development Plan under the Village Zoning Code; and

WHEREAS, Developer now seeks to modify further the Updated Land Use Plan incorporated into the Updated SUP Agreement by incorporating a revised plan for the Subject Property only into the Land Use Plan (being part of the “Master Plan” included as Exhibit B to the

Original SUP Ordinance) and the Amended Land Use Plan (being Exhibit B-1 of the Amended SUP Agreement) and the Updated Land Use Plan (being Exhibit A of the Updated SUP Agreement). Said revised plan for the Subject Property only shall be known as the “T5@CHICAGO IV Third Campus Plan” and hereby referred to as the “**Third Campus Plan**”. The Third Campus Plan shall be the new General Development Plan for the Subject Property only and shall replace the plan for the Subject Property as reflected in the Updated Land Use Plan. All parcels of the Cornerstone Property, other than the T5 Campus Property, the Second T5 Campus Property, and the Subject Property (which shall follow the Campus Plan, the Second Campus Plan, and the Third Campus Plan, respectively), shall continue to follow the Updated Land Use Plan as incorporated into the Updated SUP Agreement. The Third Campus Plan is Exhibit B of the “Fifth Amendment to SUP Agreement,” which Fifth Amendment is attached hereto as **Exhibit B**; and

WHEREAS, pursuant to notice duly published on March 27, 2025 in the *Daily Herald*, the Village’s Plan Commission/Zoning Board of Appeals (the “**PCZBA**”) did conduct a public hearing on the proposed modification of the General Development Plan approved as part of the Original SUP Ordinance by the inclusion of the Third Campus Plan for the Subject Property; and

WHEREAS, upon the conclusion of such public hearing, the PCZBA found that the Third Campus Plan satisfied all the requirements of the Zoning Code for an acceptable and appropriate General Development Plan for the Subject Property as part of the Cornerstone Property, is consistent with the Village’s Comprehensive Plan, and is also consistent with the other agreements and regulations related to the Cornerstone Property, and therefore recommended that the General Development Plan approved as part of the Original SUP Ordinance be further modified to include the Third Campus Plan for the Subject Property; and

WHEREAS, the Village Board has considered and adopted the findings and recommendations of the PCZBA regarding the amendment of the General Development Plan for the Subject Property with the incorporation of the Third Campus Plan into the original Land Use

Plan in the Original SUP Ordinance and for said Third Campus Plan to serve as the new General Development Plan for the Subject Property only; and

WHEREAS, the Village Board has also considered the Fifth Amendment of SUP Agreement, which incorporates the Third Campus Plan into the Updated Land Use Plan; and

WHEREAS, the Village Board has determined that it is in the best interests of the Village and its residents to (i) amend further the Original SUP Ordinance, (ii) further amend the Updated SUP Agreement and (iii) incorporate the Third Campus Plan into the Updated Land Use Plan.

NOW, THEREFORE, BE IT ORDAINED BY THE PRESIDENT AND BOARD OF TRUSTEES OF THE VILLAGE OF GRAYSLAKE, LAKE COUNTY, ILLINOIS, as follows:

Section 1. Recitals. The foregoing recitals are incorporated into and made a part of this Ordinance by this reference.

Section 2. Amendment to Original SUP Ordinance. The Village Board hereby amends the Original SUP Ordinance by incorporating the Third Campus Plan for the Subject Property into the original Land Use Plan attached as part of Exhibit B to the Original SUP Ordinance. Wherever the Original SUP Ordinance references the Land Use Plan, such reference shall hereafter also refer to the Third Campus Plan with respect to the Subject Property only, and any reference to the Master Plan in the Original SUP Ordinance shall be a reference to the Master Plan containing the Third Campus Plan as an element thereof.

Section 3. Approval and Authorization of Fifth Amendment to SUP Agreement. In connection with and as a condition of the approval of the Third Campus Plan, the Village Board hereby approves the Fifth Amendment to SUP Agreement in substantially the form attached hereto as **Exhibit B**. The Mayor, Village Manager, Village Clerk, and Deputy Village Clerk are hereby authorized and directed to execute or attest the Fifth Amendment to SUP Agreement on behalf of the Village following receipt of a signed Fifth Amendment to SUP Agreement from the Developer and any other parties to such Fifth Amendment to SUP Agreement.

Section 3. Effective Date. This Ordinance shall be in full force and effect after its passage, approval, and publication in pamphlet form in the manner provided by law; provided, however, that Section 2 of this Ordinance shall have no force or effect unless and until the Village has received the signed Fifth Amendment to SUP Agreement from Developer and copies of a deed or deeds or other evidence that Developer is the legal and/or beneficial owner of the Subject Property (the “***Condition Precedent Documents***”); and provided further that Developer must deliver the Condition Precedent Documents to the Village within 180 days after the passage of this Ordinance, unless the Village Board extends the time therefor.

[Signature pages to follow]

PASSED this 6th day of May, 2025

Ayes: Waldenstrom, Magnetta, Sahu, Kornit, Vogel

Nays: —

Absent and Not Voting: —

Approved: Elizabeth Davis
Village President

Attest: Kelly C. Kaul
Deputy Village Clerk



Passed: 5-6-2025

Approved: 5-6-2025

Published in Pamphlet Form: 5-6-2025

EXHIBIT A

Legal Description of the Subject Property

PARCEL 9: THAT PART OF THE SOUTHWEST QUARTER OF SECTION 11, TOWNSHIP 44 NORTH, RANGE 10, EAST OF THE THIRD PRINCIPAL MERIDIAN, DESCRIBED AS FOLLOWS: TO-WIT: COMMENCING AT THE SOUTHWEST CORNER OF SAID SECTION 11; THENCE NORTH 40 CHAINS; THENCE EAST 17.29 CHAINS TO A POINT THAT IS 22.34 CHAINS WEST OF THE EAST LINE OF SAID QUARTER SECTION; THENCE SOUTH 30 CHAINS; THENCE EAST 9.43 CHAINS TO A POINT 12.91 CHAINS WEST OF THE EAST LINE OF SAID QUARTER SECTION; THENCE SOUTH 10 CHAINS; THENCE WEST 27.31 CHAINS TO THE POINT OF BEGINNING, (EXCEPT THAT PART THEREOF LYING SOUTH OF THE HIGHWAY), AND (EXCEPT THE SOUTH 660 FEET OF THE WEST 660 FEET THEREOF) AND (EXCEPT THAT PART CONTAINED IN WARRANTY DEED TO THE COUNTY OF LAKE RECORDED FEBRUARY 4, 2015 AS DOCUMENT 7167888), IN LAKE COUNTY, ILLINOIS.

PARCEL 10: THAT PART OF THE SOUTH HALF OF SECTION 11, TOWNSHIP 44 NORTH, RANGE 10, EAST OF THE THIRD PRINCIPAL MERIDIAN, BOUNDED BY A LINE DESCRIBED AS FOLLOWS: BEGINNING AT A POINT 12.91 CHAINS WEST AND 1.64 CHAINS NORTH OF THE SOUTHEAST CORNER OF THE SOUTHWEST QUARTER OF SAID SECTION 11; THENCE NORTH 9.86 CHAINS; THENCE WEST 9.43 CHAINS; THENCE NORTH 713.38 FEET; THENCE EAST 27.84 CHAINS TO A POINT 363 FEET EAST OF THE WEST LINE OF SAID SOUTHEAST QUARTER OF SAID SECTION 11; THENCE NORTH 1174 FEET TO THE NORTH LINE OF THE SOUTHEAST QUARTER OF SAID SECTION 11; THENCE EAST ALONG THE NORTH LINE OF SAID SOUTHEAST QUARTER OF SECTION 11, 865.5 FEET TO THE CENTER LINE OF STATE ROAD NO. 83; THENCE SOUTHERLY ALONG THE CENTER OF STATE ROAD NO. 83, 2460 FEET, MORE OR LESS, TO THE CENTER OF A PUBLIC ROAD (THE INTERSECTION OF THE CENTER LINE OF SAID PUBLIC ROAD AND THE CENTER LINE OF SAID STATE ROAD NO. 83 BEING 362.6 FEET NORTH AND 266.1 FEET EAST OF THE SOUTHWEST CORNER OF SAID SOUTHEAST QUARTER OF SECTION 11); THENCE SOUTH 77 DEGREES 53 MINUTES WEST, 1142.6 FEET TO THE POINT OF BEGINNING, (EXCEPT THAT PART CONVEYED IN WARRANTY DEED TO THE PEOPLE OF THE STATE OF ILLINOIS, DEPARTMENT OF TRANSPORTATION RECORDED MARCH 6, 2014 AS DOCUMENT 7082097), AND (EXCEPT THAT PART CONVEYED TO THE COUNTY OF LAKE IN FINAL JUDGEMENT ORDER FOR CASE NO 22 ED 22 FILED JANUARY 30, 2024), ALL IN LAKE COUNTY, ILLINOIS.

PARCEL 12: THAT PART OF THE SOUTHWEST QUARTER OF SECTION 11, TOWNSHIP 44 NORTH, RANGE 10, EAST OF THE THIRD PRINCIPAL MERIDIAN DESCRIBED AS FOLLOWS: BEGINNING AT A POINT 12.91 CHAINS WEST AND 11.50 CHAINS NORTH OF THE SOUTHEAST CORNER OF THE SOUTHWEST QUARTER OF SAID SECTION 11; THENCE WEST TO A POINT THAT IS 22.34 CHAINS WEST OF THE EAST LINE OF SAID SECTION; THENCE SOUTH TO A POINT THAT IS 30 CHAINS SOUTH OF THE NORTH LINE OF SAID QUARTER SECTION; THENCE EAST TO A POINT DUE SOUTH OF THE POINT OF BEGINNING AND THENCE NORTH TO THE POINT OF BEGINNING, IN LAKE COUNTY, ILLINOIS.

PARCEL 13: THE WEST 660.0 FEET OF THE SOUTH 660.0 FEET OF THE SOUTHWEST QUARTER OF SECTION 11, TOWNSHIP 44 NORTH, RANGE 10, EAST OF THE THIRD PRINCIPAL MERIDIAN, IN LAKE COUNTY, ILLINOIS.

PARCEL 15: THAT PART OF THE SOUTH HALF OF SECTION 11, TOWNSHIP 44 NORTH, RANGE 10, EAST OF THE THIRD PRINCIPAL MERIDIAN, DESCRIBED AS FOLLOWS: BEGINNING AT A POINT 12.91 CHAINS WEST AND 1.64 CHAINS NORTH OF THE SOUTHEAST CORNER OF THE SOUTHWEST QUARTER OF SAID SECTION 11; THENCE NORTH 9.86 CHAINS; THENCE WEST 9.43 CHAINS; THENCE NORTH 713.38 FEET TO THE SOUTHWEST CORNER AND POINT OF BEGINNING OF THE DESCRIPTION; THENCE EAST 27.84 CHAINS TO A POINT 363.0 FEET EAST OF THE WEST LINE OF THE SOUTHEAST QUARTER OF SAID SECTION 11; THENCE NORTH PARALLEL WITH THE WEST LINE OF SAID SOUTHEAST QUARTER, 1174 FEET MORE OR LESS TO THE NORTH LINE THEREOF; THENCE WEST ALONG THE NORTH LINE OF THE SOUTHEAST QUARTER AND THE NORTH LINE OF THE SOUTHWEST QUARTER OF SAID SECTION 11, A DISTANCE OF 1837.44 FEET; THENCE SOUTH TO THE POINT OF BEGINNING (EXCEPT THE NORTH 40 FEET OF THE WEST 5 CHAINS OF THE SOUTHEAST QUARTER OF SECTION 11, AND THE NORTH 40 FEET OF THE EAST 22.34 CHAINS OF THE SOUTHWEST QUARTER OF SECTION 11, BOTH HERETOFORE DEDICATED FOR PUBLIC ROAD PURPOSES BY DOCUMENT 761162, RECORDED JUNE 23, 1952 AND ALSO EXCEPT THE NORTH 40 FEET OF THE EAST 33 FEET OF THE WEST 363 FEET OF THE NORTHWEST QUARTER OF THE SOUTHEAST QUARTER OF SAID SECTION 11, HERETOFORE DEDICATED FOR PUBLIC ROAD PURPOSES BY DOCUMENT 761163, RECORDED JUNE 23, 1952 AND ALSO EXCEPT THAT PART CONTAINED IN WARRANTY DEED TO THE PEOPLE OF THE STATE OF ILLINOIS, DEPARTMENT OF TRANSPORTATION RECORDED MARCH 6, 2014 AS DOCUMENT 7082097), IN LAKE COUNTY, ILLINOIS.

P.I.N.:

10-11-300-003 (PART OF PARCEL 10)

10-11-300-004 (PARCEL 12)

10-11-300-005 (PART OF PARCEL 9)

10-11-300-008 (PARCEL 13)

10-11-300-010 (PART OF PARCEL 15)

10-11-300-012 (PART OF PARCEL 9)

10-11-400-040 (PART OF PARCEL 15)

10-11-400-041 (PART OF PARCEL 15)

10-11-400-043 (PART OF PARCEL 10)

EXHIBIT B

**Fifth Amendment to Agreement of Conditions and Specifications for
a Special Use Permit for Cornerstone Property
(Generally Located Along Illinois Route 83 and Peterson Road)**

EXHIBIT B

FIFTH AMENDMENT TO AGREEMENT OF CONDITIONS AND SPECIFICATIONS FOR A SPECIAL USE PERMIT FOR CORNERSTONE PROPERTY (GENERALLY LOCATED ALONG ILLINOIS ROUTE 83 AND PETERSON ROAD)

This **FIFTH AMENDMENT TO AGREEMENT OF CONDITIONS AND SPECIFICATIONS FOR A SPECIAL USE PERMIT FOR CORNERSTONE PROPERTY (GENERALLY LOCATED ALONG ILLINOIS ROUTE 83 AND PETERSON ROAD)** (the “**Fifth Amendment**”) is dated by and between **T5@CHICAGO IV LP**, (the “**Developer**”), and the **VILLAGE OF GRAYSLAKE**, an Illinois municipality (the “**Village**”) (the Developer and Village shall hereinafter be collectively referred to as the “**Parties**”) as of this 6th day of May, 2025 (the “**Effective Date**”);

IN CONSIDERATION OF the promises each to the other made, as hereinafter set forth and other good and valuable consideration, IT IS HEREBY UNDERSTOOD AND AGREED by and between the Parties as follows:

SECTION 1. RECITALS

A. The Village has previously entered into a certain “Agreement of Conditions and Specifications for a Special Use Permit for the Cornerstone Property (the “**Cornerstone Property**”) (Generally Located Along Illinois Route 83 and Peterson Road),” dated 2 March 2010 (the “**Original SUP Agreement**”).

B. In 2019, the Village entered into a “First Amendment to Agreement of Conditions and Specifications for a Special Use Permit for Cornerstone Property (Generally Located Along Illinois Route 83 and Peterson Road)” (the “**SUP First Amendment**”), which modified the designation of a parcel in the Land Use Plan element of the Master Plan as incorporated into the Original SUP Agreement. (The Original SUP Agreement and the SUP First Amendment shall hereinafter be collectively referred to as the “**Amended SUP Agreement**,” and the Land Use Plan as amended by the SUP First Amendment shall hereinafter be referred to as the “**Amended Land Use Plan**”).

C. In 2021, the Village entered into a “Second Amendment to the Agreement of Conditions and Specifications for a Special Use Permit for Cornerstone Property (Generally Located Along Illinois Route 83 and Peterson Road)” (the “**SUP Second Amendment**”), which modified the designation of a parcel in the Amended Land Use Plan as incorporated into the Amended SUP Agreement. (The Amended SUP Agreement and the SUP Second Amendment shall hereinafter be collectively referred to as the “**Updated SUP Agreement**,” and the Amended Land Use Plan as amended by the SUP Second Amendment shall hereinafter be referred to as the “**Updated Land Use Plan**”).

D. In 2024, the Village entered into a “Third Amendment to the Agreement of Conditions and Specifications for a Special Use Permit for Cornerstone Property (Generally Located Along Illinois Route 83 and Peterson Road)” (the “**SUP Third Amendment**”), which modified the Updated Land Use Plan as incorporated into the Updated SUP Agreement by incorporating a revised plan only for certain real property consisting of approximately 135 acres of the Cornerstone Property located immediately north of the Medline facility at 2200 Cornerstone Parkway, Grayslake, IL 60030 (the “**T5 Campus Property**”) into the Updated Land Use Plan. The Third Amendment to SUP Agreement is an agreement between T5@CHICAGO IV LP and the

Village of Grayslake for the development of a data center campus on the T5 Campus Property only. (The SUP Third Amendment shall hereinafter be independently referred to as the “**Campus Agreement**” and the revised plan replacing the General Development Plan reflected in the Updated Land Use Plan for the T5 Campus Property only as amended by the SUP Third Amendment shall hereinafter be independently referred to as the “**Campus Plan**”).

E. In 2025, the Village entered into a “Fourth Amendment to the Agreement of Conditions and Specifications for a Special Use Permit for Cornerstone Property (Generally Located Along Illinois Route 83 and Peterson Road)” (the “**SUP Fourth Amendment**”), which further modified the Updated Land Use Plan as incorporated into the Updated SUP Agreement by incorporating a revised plan only for certain real property consisting of approximately 31.5 acres of the Cornerstone Property located immediately east of Cornerstone Parkway, Grayslake, IL 60030 (the “**Second T5 Campus Property**”) into the Updated Land Use Plan. The SUP Fourth Amendment is an agreement between T5@CHICAGO IV LP and the Village of Grayslake for the development of a data center campus on the Second T5 Campus Property only. (The SUP Fourth Amendment shall hereinafter be independently referred to as the “**Second Campus Agreement**” and the revised plan replacing the General Development Plan reflected in the Updated Land Use Plan for the Second T5 Campus Property only as amended by the SUP Fourth Amendment shall hereinafter be independently referred to as the “**Second Campus Plan**”).

F. The Updated SUP Agreement controls the land uses and development of certain real property that is legally described in Exhibit A of the SUP Agreement (the “**Cornerstone Property**”) pursuant to Village Ordinance No. 2009-0-26 (the “**SUP Ordinance**”), which approved a General Development Plan and granted a special use permit for a Planned Unit Development for the Cornerstone Property based on a Master Plan that included as an element thereof the Land Use Plan (being Exhibit B-1 thereof).

G. Developer is the contract purchaser of additional certain real property consisting of approximately 184 acres of the Cornerstone Property, located at the southwest corner of IL Route 83 and Peterson Road, Grayslake, IL 60030 and legally described in **Exhibit A** (the “**Subject Property**”).

H. Developer now desires to further modify the Updated Land Use Plan element of the Master Plan as incorporated into the Updated SUP Agreement by incorporating a revised plan for the Subject Property only into the Updated Land Use Plan. Said revised plan for the Subject Property only shall be known as the “T5@CHICAGO IV Third Campus Plan” and hereby referred to as the “**Third Campus Plan**” and attached hereto as **Exhibit B**.

I. Approximately 46.9 acres of the Subject Property is subject to the Heartland Settlement Agreement and Release dated October 16, 1986 (the “**Settlement Agreement**”) and recorded by the Lake County Recorder on October 2, 1987 as Document No. 2618191. Said portion of the Subject Property shall be referred to as the “**Heartland Portion**” and is identified in the “**Heartland Site Plan**” attached as **Exhibit C**. The Heartland Site Plan is a part of the Third Campus Plan.

J. Pursuant to the Settlement Agreement, the Lake County Planning, Building and Development Department (the “**LCPBD**”) has reviewed the Heartland Site Plan and confirmed that the development contemplated on the Heartland Portion of the Subject Property pursuant to the Heartland Site Plan is fully consistent with the conditions provided for in the Settlement Agreement. Said confirmation is memorialized in the Heartland Agreement Zoning Verification Letter provided by the LCPBD attached as **Exhibit D**.

K. The Third Campus Plan shall be the new General Development Plan for the Subject Property only and replace the plan for the Subject Property as reflected in the Updated Land Use Plan. All parcels of the Cornerstone Property shall continue to follow the Updated Land Use Plan as incorporated into the Updated SUP Agreement, except for the T5 Campus Property, the Second T5 Campus Property, and the Subject Property (which shall follow the Campus Plan, the Second Campus Plan, and the Third Campus Plan, respectively).

L. The Third Campus Plan allows for the Subject Property to be developed as a data center campus.

M. The Village is willing to accept the Third Campus Plan in lieu of the Updated Land Use Plan for the Subject Property only.

N. The Parties intend that the Third Campus Plan shall designate the future development and use of the Subject Property as part of the Cornerstone Property in accordance with the SUP Agreement and the SUP Ordinance, which control the development of the Cornerstone Property, except as is amended in this Fifth Amendment.

SECTION 2. LAND USE PLAN AMENDMENT

The Parties agree that the Third Campus Plan shall be incorporated into the Updated Land Use Plan and serve as the new General Development Plan for the Subject Property only. Any reference to the "Updated Land Use Plan" in the Updated SUP Agreement (or the Amended Land Use Plan in the Amended SUP Agreement or the Land Use Plan in the SUP Ordinance) shall hereafter be deemed to refer to the Third Campus Plan for the Subject Property only. Additionally, any reference to the "Master Plan" in the Updated SUP Agreement, the Amended SUP Agreement, or the SUP Ordinance (and any amendments thereto) shall be deemed to be the Master Plan with the Third Campus Plan for the Subject Property as an element thereof.

SECTION 3. DEVELOPMENT OF SUBJECT PROPERTY

In addition to meeting all Cornerstone PUD development standards as set forth in the SUP Ordinance, including without limitation the standards of the MX District as well as the Vision and Pattern Book (collectively, the "***Cornerstone Zoning Standards***"), the Parties further agree that the Subject Property shall be developed in conformance with the conditions set forth in the following sections of this Agreement.

SECTION 4. DEVELOPMENT STANDARDS

Except as noted in this Agreement, the Cornerstone Zoning Standards shall apply to development of the Subject Property only when developed for data centers. Exceptions to these standards applicable to data centers only shall be:

- A. **PUD Layout Flexibility.** The size, configuration, and number of buildings shown in the Third Campus Plan may be adjusted to accommodate facility customer needs, provided that (a) the total gross floor area of buildings and structures on the Subject Property shall not exceed 4,410,000 square feet, and (b) the Cornerstone Zoning Standards (including without limitation the Vision and Pattern Book) shall continue to apply.

- B. **Zoning Lot.** The Subject Property may be subdivided into sliver lots as approved through a Final Plat of Subdivision by the Village, provided that any development of the Subject Property requires sliver lots to be combined to meet the minimum lot size requirement as required by the Cornerstone Zoning Standards.
- C. **Parking.** A minimum of one (1) parking space per 5,300 square feet of gross floor area shall be provided [rather than the minimum of one (1) per 1,000 square feet as set forth in the Cornerstone Zoning Standards].
- D. **Floor Area Ratio.** A maximum floor area of 1.0 shall be permitted [rather than the maximum of 0.6 as set forth in the Cornerstone Zoning Standards].
- E. **Impervious Surface.** A maximum impervious surface coverage of 90% shall be permitted [rather than the maximum of 85% as set forth in the Cornerstone Zoning Standards].
- F. **Fence Height.** A maximum fence height of 8 feet [rather than 6 feet] shall be permitted, provided that all fencing substantially conforms to the Security Fencing Rendering attached as **Exhibit E** and otherwise meets the Cornerstone Zoning Standards and Vision and Pattern Book standards.
- G. **Design Standards.** Building elevations and detailed plans and renderings for any building on the Subject Property shall be submitted to the Village for review and approval prior to construction of such building or buildings. All buildings on the Subject Property shall be designed so as to be consistent with the Grayslake Comprehensive Plan, the Vision and Pattern Book, and the Architectural Renderings attached to this Agreement as **Exhibit F**.
- H. **Screening of Substation, Switchyards and Equipment Yards.** For all substations, switchyards, and equipment yards on the Subject Property, the following additional standards shall apply:
- i. The screening walls around the equipment yards shall be architecturally compatible with the buildings and of sufficient height to adequately screen equipment from public roadways and viewpoints; provided, however, that any such screening wall shall comply with the applicable building setback requirements and shall not exceed 20 feet in height.
 - ii. The screening walls around the substation and switchyards shall substantially conform to the Substation and Switchyard Screening Wall Rendering attached as **Exhibit G**. Further:
 - (a) the screening walls around any substation or switchyard shall be at a height to substantially screen the substation or switchyard from adjoining properties. Such screening walls shall extend to the maximum height allowable for Commonwealth Edison to serve the Subject Property, but in no event less than ten feet (10') nor more than twenty feet (20'); and
 - (b) landscaping satisfying the standards of the Vision and Pattern Book

shall be installed around these screening walls.

- I. **Phases.** The Developer shall have the right to develop the Subject Property in phases as elected by the Developer: (i) subject to the review and approval of the Village; and (ii) provided that each separate phase shall independently comply with all Applicable Village Codes and Ordinances as modified by this Agreement and be able to operate independently as a functioning system.

SECTION 5. PROJECT IMPROVEMENTS

A. **Description of Project Improvements.** In connection with the development of the Subject Property, the Developer shall, at its sole cost and expense, design, construct, and install all of the Project Improvements on the Subject Property that are identified in the Preliminary Engineering Plan attached hereto as **Exhibit H** and in the approved Final Engineering Plans and Final Landscaping Plans. Project Improvements are inclusive of both Public Improvements and Private Improvements and defined as follows:

- i. **Project Improvements.** All of the improvements and facilities that are required or authorized to be made, constructed, or installed in connection with the subdivision and development of the Subject Property, which improvements and facilities are set forth on the Preliminary Engineering Plan (**Exhibit H**), and/or described in Section 5.A, Section 5.B, and Section 5.D of this Agreement. The Project Improvements shall be comprised of both Public Improvements and Private Improvements.
- ii. **Public Improvements.** Project Improvements that are to be dedicated to a public body or agency as part of the development of the Subject Property, and which are depicted on the Third Campus Plan or Preliminary Engineering Plan as being dedicated to the public.
- iii. **Private Improvements.** Project Improvements (other than Public Improvements) that are required to be constructed, installed, or placed in service as part of the development of the Subject Property pursuant to the Third Campus Plan, Preliminary Engineering Plan, Final Engineering Plans, this Agreement, or Requirements of Law, including without limitation the following:
 - a. Stormwater detention areas;
 - b. Fencing;
 - c. Berms;
 - d. Landscaping (including without limitation sidewalk plantings);
 - e. Private Roadways/Driveways
 - f. Exterior lighting on private property (including without limitation antique lighting (Sternberg)).

B. **Project Improvements Specifications.** Further, all Project Improvements on the Subject Property shall be designed, constructed, and installed and in accordance with the following specifications:

- i. **Landscaping.** Landscaping on the Subject Property shall be installed pursuant to the Vision and Pattern Book. The individual lots shall be required to submit landscape plans for approval with applications for building permits and to maintain the

landscaping on the Subject Property in accordance with the Individual Lot Landscaping Plan and good arboricultural and landscaping practices. If, for whatever reason, any of the plantings depicted on any Final Landscaping Plan or Individual Lot Landscaping Plan are removed, destroyed, or fail to survive two years following (i) the issuance of a certificate of occupancy for the improvements on a particular lot or parcel or (ii) initial installation of such plantings, whichever is later, the Developer shall, not later than the next planting season occurring at least 30 days after the Developer receives notice from the Village, replace such plantings with substitute plantings that substantially conform to the size and type of the original plantings, as depicted on the Final Landscape Plan or Individual Lot Landscaping Plan. For purposes of this Subsection, a “planting season” shall be either the period between 15 April and 15 June or the period between 15 September and 1 November in any calendar year.

- ii. **Stormwater Detention.** The Developer shall design and install the stormwater management and detention facilities for the Subject Property, which facilities shall be constructed and completed in accordance with the Preliminary Engineering Plans and Final Engineering Plans (collectively, the “**Storm Sewer Improvements**”), The Storm Sewer Improvements shall be built on private property and maintained by the private property owner. The Village and the Developer agree that Storm Sewer Improvements may be installed on the Subject Property in phases acceptable to and approved by the Village in accordance with the Requirements of Law.
- iii. **Sanitary Sewer.** Sanitary sewer service shall be provided to the Subject Property by sanitary sewer facilities connected to the Village of Grayslake sanitary sewer system, which sanitary sewer facilities shall be constructed and completed in accordance with the Preliminary Engineering Plans and Final Engineering Plans (the “**Sanitary Sewer Improvements**”). The Village and the Developer agree that Sanitary Sewer Improvements may be installed on the Subject Property in phases acceptable to and approved by the Village.
- iv. **Water.** Water service shall be provided to the Subject Property through the Village’s public water system. The extensions and upgrades to the water system shall be constructed and completed in accordance with the Preliminary Engineering Plans (**Exhibit H**) and Final Engineering Plans (collectively the “**Water Improvements**”). The Village and the Developer agree that Water Improvements may be installed on the Subject Property in phases acceptable to and approved by the Village.
- v. **Roadway Improvements.** All public roadways, as well as public access improvements to, from, and within the Subject Property, shall be constructed by Developer in compliance with all Applicable Village Codes and Ordinances and completed in accordance with the approved Preliminary Engineering Plans (**Exhibit H**) and Final Engineering Plans (“**Roadway Improvements**”). With respect to the Roadway Improvements:
 - a. Any public road shall be dedicated to the Village or other appropriate roadway authority.
 - b. Pursuant to that certain “Central Lake County Area Transportation Improvement Intergovernmental Agreement” to which the Village is a signatory (the “**Transportation IGA**”), the Developer shall pay to the Village the appropriate amount due under the Transportation IGA for

the Subject Property. The payment shall be made upon the Developer's closing on the purchase of the Subject Property which shall occur no later than March 31, 2026.

- vi. **Paved Paths.** All paved multi-use paths within the Subject Property as identified on the Third Campus Plan shall be constructed by Developer in compliance with all Applicable Village Codes and Ordinances and completed in accordance with the approved Preliminary Engineering Plans (**Exhibit H**) and Final Engineering Plans.
- vii. **Street Lighting.** Final exterior site lighting plans shall be included in and approved as part of the Final Engineering Plans and in accordance with Applicable Village Codes and Ordinances and the Vision and Pattern Book.
- viii. **Signage.** All signage shall be in accordance with the Vision and Pattern Book. Developer shall submit to the Village for its review and approval (which approval shall not be unreasonably withheld) a comprehensive sign package including all proposed signage for the Subject Property (except individual building signs).
- ix. **Public Utility Easements.** Public Utility Easements shall be provided as shown on the Final Subdivision Plat in locations as agreed to by the Parties, including but not limited to water and sanitary sewer easements, cross access easements for use/access of roads/driveways by individual lot users, and any public access road shown on the Third Campus Plan and Preliminary Engineering Plan.
- x. **Grading.** Following the grading of the Subject Property, Developer shall seed all Lots, except for those for which a building permit has been issued. Developer shall also maintain or cause to be maintained such Lots in a safe and litter-free condition until a building permit has been issued therefor. In addition, Developer shall cause such grass to be cut at least monthly during any growing season. Upon transfer of any Lot on the Subject Property, the transferee shall be responsible for the maintenance of such Lot.

C. **Design and Construction of the Project Improvements.** All Project Improvements shall be designed and constructed pursuant to and in accordance with the Final Engineering Plans, which shall conform generally to the Preliminary Engineering Plans, satisfy all Requirements of Law, and otherwise be prepared to the reasonable satisfaction of the Village Engineer. Moreover, the Sewer Improvements shall be subject to the review and approval of the Lake County Public Works Department. All work performed on the Project Improvements shall be conducted in a good and workmanlike manner and with due dispatch once commenced in accordance with the schedule approved by the Village Engineer and referenced in Section 5.D of this Agreement. All materials used for construction of the Project Improvements shall be new and of first quality unless otherwise approved by the Village; provided, however, that, in constructing roads or driveway improvements and other pavement, the Developer agrees to recycle construction materials in accordance with Applicable Village Codes and Ordinances. Unless otherwise approved in advance by Village staff, no construction shall be permitted on the Subject Property before 6:00 a.m. or after 6:00 p.m. on Mondays through Fridays nor before 8:00 a.m. or after 5:00 p.m. on Saturdays and Sundays.

D. **Completion of the Project Improvements.** All Project Improvements shall be completed and made ready for inspection and approval by the Village pursuant to the construction schedule that will be approved by the Village Engineer as part of the Final Engineering Plans, provided that all Public Improvements shall be completed within the following time periods, which time periods may be extended by resolution of the Village Board for good cause shown and shall not require an amendment to this Agreement:

- i. Within ten (10) years of the approval of Final Subdivision Plat for the Subject Property, unless extended by the Village, the Public Improvements listed below and included in the Preliminary Engineering Plan shall be completed and made ready for inspection and approval:
 - a. Water Improvements;
 - b. Sanitary Sewer Improvements;
 - c. Roadway Improvements;
 - d. Paved Paths;
 - e. Street Lighting.
- ii. In addition to the aforementioned Public Improvements, as necessary for the functionality of the development, the Private Roadways/Driveways shall also be completed within this timeframe.
- iii. Notwithstanding anything to the contrary in this Subsection 5.D, Project Improvements shall be completed to the extent necessary to ensure that any building to be occupied on the Subject Property is fully served with all required Project Improvements to meet standards for occupancy and public safety as provided for in the Requirements of Law.

E. **Engineering Services.** The Developer shall provide, at their sole cost and expense, all engineering services for the design and construction of the Project Improvements that either (i) it is to construct or (ii) that are to be constructed by others as prepared or approved by the Village. In addition, the Developer shall deliver funds to the Village to be maintained by the Village as an escrow from which Village expenses relating to engineering plan review and inspections shall be reimbursed; the amount of such escrow shall be established by the Village Manager or the Manager's designee to reflect a reasonable estimate of such engineering review and inspection expenses, and the Developer may be required to supplement the amount deposited in such escrow from time-to-time to ensure that all such Village engineering expenses are reimbursed. Upon completion of the Project Improvements and all reviews and inspections relating thereto, any funds remaining in such escrow shall be returned to the Developer.

F. **Construction Traffic.** The Village reserves the right to designate certain prescribed routes of access to the Subject Property for construction traffic to provide for the protection of pedestrians and to minimize disruption of traffic and damage to paved street surfaces; provided, however, that such designated routes shall not be unreasonable or unduly circuitous nor unreasonable or unduly hinder or obstruct direct and efficient access to the Subject Property for construction traffic. At all times during the construction of the Project Improvements,

and until completion, approval, and, where appropriate, acceptance of the Public Improvements by the Village, the Developer shall keep all routes used for construction traffic free and clear of mud, dirt, debris, obstructions, and hazards with appropriate access for emergency vehicles. Developer shall repair any damage caused by such construction traffic.

G. Inspection and Approval of the Project Improvements

- i. Final Inspection and Approval of the Project Improvements. The Developer shall notify the Village Engineer when it believes that any or all of the Project Improvements have been fully and properly completed and shall request final inspection and approval of such Project Improvements by the Village. The notice and request shall include any of the “as-built” or “record” drawings required by Section 5.G.ii and, with respect to the Public Improvements, to the extent not previously submitted, contractors’ sworn statements, final lien waivers, and all other appropriate documentation necessary to demonstrate that all contractors, subcontractors, and material suppliers, as well as all engineering and inspection fees, have been paid in full. The notice and request shall be given far enough in advance to allow the Village Engineer time to inspect the Project Improvements and to prepare a punch list of items requiring repair or correction and to allow the Developer time to make all required repairs and corrections prior to the scheduled completion date. The Developer shall promptly make all necessary repairs and corrections as specified on the punch list and in accordance with the Final Engineering Plans.
- ii. “As-Built” or “Record” Drawings and Specifications of the Public Improvements. The Developer shall, not later than the time it gives the notice of completion and request for approval, provide to the Village three sets of “as-built” or “record” drawings for all of the Public Improvements, including one set on a reproducible mylar. The “as-built” or “record” drawings and specifications shall depict every Public Improvement as built and shall include all final dimension, elevations, and calculations necessary to fully describe the Public Improvements and to establish the compliance with this Agreement and all Requirements of Law.

H. **Guaranty of the Project Improvements.** The Developer hereby guarantees the prompt and satisfactory correction of all defects and deficiencies in the Project Improvements, or within public rights-of-way or easements, that occur or become evident within one year after completion and approval of the Project Improvements by the Village pursuant to this Agreement. If any defect or deficiency occurs or becomes evident during that period, then the Developer shall, after 30 days’ prior written notice from the Village (subject to Force Majeure), correct it or cause it to be corrected. In the event any Project Improvement is repaired or replaced pursuant to any demand, the Guaranty provided by this Section 5.H shall be extended, as to such repair or replacement, for one full year from the date of such repair or replacement.

I. Issuance of Permits and Certificates.

- i. Building Plan Review and Permitting. The Village shall be responsible for the building plan review and permitting for the entire Subject Property, including the Heartland Portion, as agreed to by the LCPBD and memorialized in **Exhibit D.** This responsibility is accepted by the Village in accordance with the

"Intergovernmental Agreement between the Village of Grayslake and the County of Lake Regarding the Central Range Area of the Heartland Property" (the "**Central Range Agreement**"). Under the Central Range Agreement, the County may delegate its authority for building inspections and related development services for the Heartland Property to the Village, provided the Village gives written acceptance.

- ii. Performance Security. The Village shall not be required to issue any permits in connection with any Project Improvements or other development activities relating to the Subject Property until the Developer shall have delivered to the Village the performance securities required under Section 7 of this Agreement.
- iii. At-Risk Excavation and Grading Activities. The Developer shall have the right to commence earth-moving activities on the Subject Property or any phase thereof, at any time after the execution of this Agreement and prior to obtaining approval of Final Engineering Plans, but not until after:
 - a. Receipt of a Watershed Development Permit, or an earth change approval for such work pursuant to the applicable Watershed Development Ordinance.
 - b. Delivery of a Letter of Credit in the forms attached hereto as **Exhibit J**.
 - c. Village approval of the stormwater management, soil sedimentation, and erosion control plans, to undertake excavation, preliminary grading work, and filling and soil stockpiling on the Subject Property in preparation of development of the Subject Property pursuant to this Agreement.

The Developer shall not perform any such activities within any wetland area until it has received all approvals for such work in accordance with the Requirements of Law. All work shall be undertaken at Developer's sole risk without injury to adjacent properties. The Developer agrees to defend and hold harmless the Village for such work and to the extent that any work done pursuant to this paragraph does not conform to the approved Final Engineering Plans or any permit plans, the Developer shall be required to regrade or otherwise correct the affected portion of the Subject Property to comply with the approved Final Engineering Plans and all permit requirements.

- iii. Right to Withhold Permits and Certificates. The Village shall have the absolute right to withhold any building permit or certificate of occupancy at any time the Developer is in breach of the terms of this Agreement, subject to the Village providing written notice of such violation and providing the Developer with an opportunity for the Developer to cure such violation within 30 days of such notice or such longer period as may be provided herein.
- iv. Completion of Improvements. The Village shall have no obligation to issue certificates of occupancy for any Structural Improvements located on the Subject Property until the applicable Project Improvements are completed by the Developer in accordance with the schedule approved by the Village Engineer as referenced in Section 5.D of this Agreement or until other arrangements satisfactory to the Village Engineer, in such engineer's reasonable discretion, shall have been made. No certificate of occupancy by the Village at any time prior to

completion of all the Public Improvements shall be issued and, where appropriate, acceptance thereof by the Village through the issuance of an occupancy permit shall not confer on the Developer any right or entitlement to any other building permit or certificate of occupancy.

J. **Abandonment of Property Development.** Subject to Force Majeure, if the Developer fails to diligently pursue all construction as required in, or permitted by, this Agreement to completion within the time period prescribed in the building permit or permits issued by the Village for such construction, and if the building permit or permits are not renewed within three months after the expiration thereof, the Developer shall, within 60 days after notice from the Village, remove any partially constructed or partially completed Project Improvements from the Subject Property and take any other actions necessary in order to secure and/or make safe the Subject Property. In the event the Developer fails or refuses to remove said Improvements or secure or make safe the Subject Property, as required, the Village shall have, and is hereby granted, in addition to all other rights afforded to the Village in this Agreement and by law, the right, at its option, to secure and/or make safe the Subject Property, including, if necessary, demolishing and/or removing any unsafe Project Improvements, and the Village shall have the right to apply any applicable security or otherwise charge the Developer for an amount sufficient to defray the entire cost of the work, including reasonable legal and administrative costs. If the amount charged is not paid by the Developer within 30 days following a demand in writing by the Village for payment, the charge, together with interest and costs of collection (including reasonable attorney's fees), shall become a lien against any Lot (as depicted on the Final Subdivision Plat) on which the work was performed, and the Village shall have the right to collect the charge, with interest and costs, and to enforce the lien in the same manner as mortgage foreclosure proceedings.

K. **Damage to the Subject Property and Other Property.** The Developer shall maintain the Subject Property and all streets and sidewalks in and adjacent to the Subject Property in a safe condition at all times during development of the Subject Property and construction of the Project Improvements. Further, the Developer shall promptly clean all debris deposited on any street, sidewalk, or other public property in or adjacent to the Subject Property by the Developer or any agent of or contractor hired by, or on behalf of, the Developer; and shall repair any damage to such property that may be caused by the activities of the Developer or any agent of or contractor hired by, or on behalf of, the Developer.

SECTION 6. PAYMENT OF VILLAGE FEES AND COSTS

A. **General Requirements.** In addition to any other costs, payments, fees, charges, contributions, or dedications required by this Agreement, the Developer shall pay to the Village, as and when due, all application, inspection, and permit fees, and all other fees, charges, and contributions required by the Applicable Village Codes and Ordinances.

B. **Special Requirements.** In addition to any other costs, payments, fees, charges, contributions, or dedications required by this Agreement or by the Applicable Village Codes and Ordinances, the Developer shall pay to the Village, within 14 days of presentation of a written demand or demands therefor, all reasonable legal, engineering, and other consulting or administrative fees, costs, and expenses incurred or accrued in connection with the review and processing of plans for, and inspection of, the development and in connection with the negotiation, preparation, consideration, and review of this Agreement. In connection with such requirement, the Developer shall also submit, and replenish as needed, an escrow to the Village in accordance

with Village requirements. Payment of all such fees, costs, and expenses for which demand has been made, but payment has not been received, by the Village prior to execution of this Agreement shall be made by a certified or cashier's check within 14 days of presentation of an invoice unless otherwise agreed to by the Parties.

SECTION 7. PERFORMANCE SECURITY

A. Performance and Payment Security; Cash Bond

1. **Performance and Payment Letter of Credit or Bond**. As security to the Village for the performance by the Developer of its obligations to construct and complete the Project Improvements pursuant to and in accordance with the Final Engineering Plans, the Developer shall deposit with the Village one of the following:
 - a. a combined performance and payment letter of credit (***"Performance and Payment Letter of Credit"***) in a total amount equal to 110% of the estimate of the costs of construction and completion of the Project Improvements so secured as determined by the Village Engineer (***"Approved Cost Estimate"***), or
 - b. a performance bond and a payment bond (***"Performance Bond"*** and ***"Payment Bond,"*** respectively), each in an amount equal to 110% of the actual costs of construction and completion of the Project Improvements so secured based on executed contracts for all the Project Improvement work as confirmed by the Village Engineer (the ***"Approved Actual Costs"***), or
 - c. such other financial security (including through use of an escrow) to which the parties may mutually agree,

(such letter of credit, bond, or other security shall be referred to from time to time as the ***"Performance and Payment Security"***). The Developer shall not be required to post Performance and Payment Security with the Village to secure the performance of any obligations related to Public improvements for which the Developer has secured such obligations with another governmental entity. In addition to the Performance and Payment Security, and as additional security to the Village for the performance by the Developer of the Developer's obligations (i) to pay all Village fees, costs, and expenses due from the Developer pursuant to this Agreement, (ii) to maintain and repair driveways, sidewalks, and other public property pursuant to this Agreement, (iii) to restore property pursuant to this Agreement, and (iv) to otherwise faithfully perform its undertakings pursuant to this Agreement except for the construction and completion of the Project Improvements, the Developer shall deposit with the Village cash (***"Cash Deposit"***) in one of the following total amounts:

- d. if the Developer deposits a Performance and Payment Letter of Credit, then no Cash Deposit shall be required; or
- e. If the Developer deposits a Performance Bond and a Payment Bond, then the Cash Deposit shall be in the amount of \$50,000.

The terms of this Section 7.A.1 do not excuse the Developer's obligation to maintain any escrow otherwise required pursuant to the terms of any other provision of this Agreement or the Applicable Village Codes and Ordinances.

2. **Maintenance of Security.** The deposit of the Performance and Payment Security and the Cash Deposit shall be a condition precedent to the issuance of a building permit for the Improvements. The Performance and Payment Security and the Cash Deposit shall be maintained and renewed by the Developer, and shall be held in escrow by the Village, until approval and acceptance, where appropriate, of all the Project Improvements by the Village pursuant to Section 5 of this Agreement and until the posting of the Guaranty Letter of Credit required by Section 7.B below. After the acceptance and posting of the Guaranty Letter of Credit, the Village shall release the Performance and Payment Security and any amounts remaining in the Cash Deposit.

B. **Guaranty Letter of Credit.** As a condition of the Village's approval and acceptance, where appropriate, of any or all of the Project Improvements pursuant to Section 5 of this Agreement, the Developer, on behalf of itself and its successors, shall post a letter of credit in the amount of 10% of the actual total cost of the Project Improvements (as certified by the Developer's engineer and approved by the Village Engineer) as security for the performance of the Developer's obligations with respect to the Project Improvements under this Agreement ("**Guaranty Letter of Credit**"). The Guaranty Letter of Credit shall be held by the Village in escrow until the end of the one-year guaranty period set forth in Section 5 of this Agreement or until one year after the proper correction of any defect of deficiency in the Project Improvements pursuant to Section 5.G and payment thereof whichever occurs later. If the Village is required to draw on the Guaranty Letter of Credit by reason of the Developer's failure to fulfill its obligations under this Agreement, then the Developer, within 10 days thereafter, shall cause the Guaranty Letter of Credit to be increased to its full original amount. The Developer shall not be required to post a Guaranty Letter of Credit with the Village to secure the performance of any obligations related to Project Improvements for which the Developer has secured such obligations with another governmental entity.

C. **Interests and Costs.** The Developer shall not be entitled to interest on the Cash Deposit. The Developer shall bear the full cost of securing and maintaining the Performance and Payment Security and the Guaranty Letter of Credit.

D. **Form of Bond, Letters of Credit.** The Performance and Payment Security and the Guaranty Letter of Credit each shall be in a form satisfactory to the Village Attorney in accordance with this Section 7.D.

1. **Performance and Payment Bond.** The Performance and Payment Bond shall be in substantially the form attached to this Agreement as **Exhibit I** and shall be from a surety company acceptable to the Village and licensed to do business in the State of Illinois with a general rating of A and a financial size category of Class XV or better in Best's Insurance Guide. The penal sum of the Performance and Payment Bond shall not be reduced by reason of any Project Improvement work satisfactorily completed and shall include attorney's fees, court costs, and administrative and other expenses necessarily paid or incurred in successfully enforcing performance of the obligation of the surety under such Bond. No changes, modifications, alterations, omissions, deletions, additions, extensions of time, or forbearances on the part of either the Village or the Developer to the other in or to the terms of this Agreement; in or to the schedules, plans, drawings, or specifications for the Project Improvements; in or to the method or manner of performance of the Project Improvement work; or in or to the mode or manner of payment therefor, shall operate in any way to release the Developer or the surety or affect the obligation of either of them under such Bond and all notice of any and all of the foregoing changes, modifications, alterations, omissions, deletions, additions, extensions of time, or forbearances,

and all notice of any and all defaults by the Developer, shall be waived by the surety under the Bond.

2. **Letter of Credit.** Each Letter of Credit shall be in substantially the form attached to this Agreement as **Exhibit J** and shall be from a bank acceptable to the Village and having capital resources of at least \$50,000,000, with an office in the Chicago Metropolitan Area and insured by the Federal Deposit Insurance Corporation. Each letter of credit shall, at a minimum, provide that (a) it shall expire no earlier than the later of one year following the date of its issuance or 35 days after delivery to the Village or of written notice that the letter of credit will expire, (b) it may be drawn on based upon the Village Manager's certification that the Developer has failed to fulfill any of the obligations for which the letter of credit is security, as stated in this Section 7, (c) it shall not require the consent of the Developer prior to any draw on it by the Village, (d) it shall not be canceled without the prior written consent of the Village, and (e) if at any time it will expire within 35 or any lesser number of days, and if it has not been renewed, and if any obligation of the Developer for which it is security remains uncompleted or unsatisfactory, then the Village may, without notice and without being required to take any further action of any nature whatsoever, call and draw down the letter of credit and thereafter either hold all proceeds as security for the satisfactory completion of all obligations or employ the proceeds to complete all obligations and to reimburse the Village for any and all costs and expenses, including legal fees and administrative costs, incurred by the Village, as the Village shall determine. Upon completion of the Developer's obligations to construct and complete the Project Improvements pursuant to and in accordance with this Agreement, and after reimbursement of the Village for all costs and expenses, including legal fees and administrative costs, incurred by the Village, then the Village shall release to the Developer any proceeds remaining on deposit with the Village drawn from the letter of credit.

The Performance and Payment Letter of Credit may provide that the aggregate amount of the letter of credit may be reduced by resolution of the Village Board to reimburse the Developer for payment of Project Improvement work satisfactorily completed. No reduction for Project Improvement work satisfactorily completed shall be allowed except upon presentation by the Developer of proper contractors' sworn statements, partial or final waivers of lien, as may be appropriate, and all additional documentation as the Village may reasonably request to demonstrate satisfactory completion of the Improvement in question and full payment of all contractors, subcontractors, and material suppliers.

The Guaranty Letter of Credit shall not be reduced by reason of any cost incurred by the Developer to satisfy its obligations under Section 8 of this Agreement.

E. **Replenishment of Security.** If at any time the Village determines that the funds remaining in the Cash Deposit and the Performance and Payment Security are not sufficient to pay in full (i) the remaining unpaid cost of all Project Improvements, (ii) the costs of demolition or making safe of any Structural Improvements that are in violation Of the Requirements of Law or that are incomplete or abandoned so as to create any hazard to the public health, safety, or welfare, and (iii) all unpaid or reasonably anticipated Village fees, costs, and expenses, or that the funds remaining in the Guaranty Letter of Credit are not, or may not be, sufficient to pay all unpaid costs of correcting any and all defects and deficiencies in the Project Improvements and all unpaid or reasonably anticipated Village fees, costs, and expenses relating to the Project Improvements, then, within 10 days after a demand by the Village, the Developer shall increase the amount of the Cash Deposit or the appropriate bond or letter of credit to an amount determined by the Village to be sufficient to pay unpaid fees, costs, and expenses. Failure to increase the amount of the security shall be grounds for the Village to retain any remaining balance of the

Cash Deposit and to receive the proceeds of, or to draw down, as the case may be, the entire remaining balance of the appropriate bond or letter of credit. Upon completion of the Developer's obligations to construct and complete the Project Improvements pursuant to and in accordance with this Agreement, and after reimbursement of the Village for all fees and all costs and expenses, including legal fees and administrative costs, incurred by the Village, then the Village shall release to the Developer any remaining Cash Deposit and any proceeds remaining on deposit with the Village from any bond or letter of credit.

F. **Replacement Bond, Letters of Credit.** If at any time the Village determines that the surety company issuing the Performance and Payment Bond is not licensed to do business in the State of Illinois with a general rating of A and a financial size category of Class XV or better in Best's Insurance Guide or the bank issuing either the Performance and Payment Letter of Credit or the Guaranty Letter of Credit is without capital resources of at least \$50,000,000, or if at any time the Village determines that the surety company or bank is unable to meet any federal or state requirement for reserves, is insolvent, is in danger of becoming any of the foregoing, or is otherwise in danger of being unable or unwilling to honor the bond or letter of credit at any time during its term, or if the Village otherwise reasonably deems itself to be insecure, then the Village shall have the right to demand that the Developer provide a replacement bond or letter of credit, as the case may be, from a surety company or bank satisfactory to the Village.

The replacement bond or letter of credit shall be deposited with the Village not later than 30 days after a demand. Upon deposit, the Village shall surrender the original bond or letter of credit to the Developer. Failure to provide a replacement bond or letter of credit shall be grounds for the Village to retain any remaining balance of the Cash Deposit and to receive the proceeds of, or to draw down, as the case may be, the entire remaining balance of the appropriate bond or letter of credit.

G. **Use of Funds in the Event of Breach of Agreement.** If the Developer fails or refuses to complete the Project Improvements in accordance with this Agreement, or fails or refuses to correct any defect or deficiency in the Project Improvements as required by Section 5 of this Agreement, or fails or refuses to restore property in accordance with a demand made pursuant to Section 5 of this Agreement, or fails or refuses to pay any amount demanded by the Village as and when required pursuant to Section 7 of this Agreement, or in any other manner fails or refuses to meet fully any of its obligations under this Agreement, then the Village in its reasonable discretion, may retain all or any part of the Cash Deposit and/or initiate a claim against, or draw on, as the case may be, and retain all or any of the funds remaining in the appropriate bond or letter of credit. The Village thereafter shall have the right, subject to reasonable notice and opportunity for cure, to exercise its rights under this Agreement, to take any other action it deems reasonable and appropriate to mitigate the effects of any failure or refusal, and to reimburse itself from the proceeds of the Cash Deposit and/or the appropriate bond or letter of credit for all of its costs and expenses, including legal fees and administrative expenses, resulting from or incurred as a result of the Developer's failure or refusal to fully meet its obligations under this Agreement. If the funds remaining in the appropriate bond or letter of credit are insufficient to repay fully the Village for all costs and expenses, then the Developer shall upon demand of the Village therefor deposit with the Village any additional funds as the Village determines are necessary within 14 days of a request therefor, to fully repay such costs and expenses and to establish such cash reserve.

H. **Village Lien Rights.** If any money, property, or other consideration due from the Developer to the Village pursuant to this Agreement is not either recovered from the letter of credit required in this Section 7 or paid or conveyed to the Village by the Developer within 30 days after

a demand for payment or conveyance, then the money, or the Village's reasonable estimate of the value of the property or other consideration, together with interest and costs of collection, including legal fees and administrative expenses, shall become a lien upon all portions of the Subject Property in which the Developer retains any legal, equitable, or contractual interest, and the Village shall have the right to collect the amount or value, with interest and costs, including legal fees and administrative expenses, and the right to enforce the lien in the same manner as in statutory mortgage foreclosure proceedings. In the event, but only in the event, of a sale or transfer of the Subject Property pursuant to a decree of foreclosure or any other proceeding in lieu of foreclosure, such lien shall be subordinate to any first mortgage whether now or hereafter placed upon the Subject Property. No other sale or transfer shall not relieve the Subject Property from liability for any charges hereafter becoming due, nor from the lien of any charge, except as otherwise provided by law.

I. **Alternative Security.** The Parties may mutually agree to utilize an alternative form of Performance and Payment Security, but only to the extent approved in writing by the Village Manager.

SECTION 8. CONTINUED EFFECT

Except as otherwise expressly provided in this Fifth Amendment, the terms and provisions of the Updated SUP Agreement, the SUP Third Amendment, and the SUP Fourth Amendment shall remain in full force and effect. Nothing in this Fifth Amendment shall affect any Final PUD Plans that have previously been approved for any part of the Subject Property.

IN WITNESS WHEREOF, the Parties to this Fifth Amendment by their signatures acknowledge that they have read and understand this Fifth Amendment and intend to be bound by its terms.

VILLAGE OF GRAYSLAKE

BY:

MAYOR Date

ATTESTED:

DEPUTY VILLAGE CLERK Date

T5@CHICAGO IV LP

BY:

AUTHORIZED OFFICER Date

ATTESTED:

AUTHORIZED OFFICER Date

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a demand for payment or conveyance, then the money, or the Village's reasonable estimate of the value of the property or other consideration, together with interest and costs of collection, including legal fees and administrative expenses, shall become a lien upon all portions of the Subject Property in which the Developer retains any legal, equitable, or contractual interest, and the Village shall have the right to collect the amount or value, with interest and costs, including legal fees and administrative expenses, and the right to enforce the lien in the same manner as in statutory mortgage foreclosure proceedings. In the event, but only in the event, of a sale or transfer of the Subject Property pursuant to a decree of foreclosure or any other proceeding in lieu of foreclosure, such lien shall be subordinate to any first mortgage whether now or hereafter placed upon the Subject Property. No other sale or transfer shall not relieve the Subject Property from liability for any charges hereafter becoming due, nor from the lien of any charge, except as otherwise provided by law.

I. **Alternative Security.** The Parties may mutually agree to utilize an alternative form of Performance and Payment Security, but only to the extent approved in writing by the Village Manager.

SECTION 8. CONTINUED EFFECT

Except as otherwise expressly provided in this Fifth Amendment, the terms and provisions of the Updated SUP Agreement, the SUP Third Amendment, and the SUP Fourth Amendment shall remain in full force and effect. Nothing in this Fifth Amendment shall affect any Final PUD Plans that have previously been approved for any part of the Subject Property.

IN WITNESS WHEREOF, the Parties to this Fifth Amendment by their signatures acknowledge that they have read and understand this Fifth Amendment and intend to be bound by its terms.

VILLAGE OF GRAYSLAKE

BY:

Elizabeth Davis 5-6-25
MAYOR Date

ATTESTED:

Kelly C. Kaul 5-6-2025
DEPUTY VILLAGE CLERK Date



T5@CHICAGO IV LP

BY:

EXHIBIT A

Legal Description of the Subject Property

PARCEL 9: THAT PART OF THE SOUTHWEST QUARTER OF SECTION 11, TOWNSHIP 44 NORTH, RANGE 10, EAST OF THE THIRD PRINCIPAL MERIDIAN, DESCRIBED AS FOLLOWS: TO-WIT: COMMENCING AT THE SOUTHWEST CORNER OF SAID SECTION 11; THENCE NORTH 40 CHAINS; THENCE EAST 17.29 CHAINS TO A POINT THAT IS 22.34 CHAINS WEST OF THE EAST LINE OF SAID QUARTER SECTION; THENCE SOUTH 30 CHAINS; THENCE EAST 9.43 CHAINS TO A POINT 12.91 CHAINS WEST OF THE EAST LINE OF SAID QUARTER SECTION; THENCE SOUTH 10 CHAINS; THENCE WEST 27.31 CHAINS TO THE POINT OF BEGINNING, (EXCEPT THAT PART THEREOF LYING SOUTH OF THE HIGHWAY), AND (EXCEPT THE SOUTH 660 FEET OF THE WEST 660 FEET THEREOF) AND (EXCEPT THAT PART CONTAINED IN WARRANTY DEED TO THE COUNTY OF LAKE RECORDED FEBRUARY 4, 2015 AS DOCUMENT 7167888), IN LAKE COUNTY, ILLINOIS.

PARCEL 10: THAT PART OF THE SOUTH HALF OF SECTION 11, TOWNSHIP 44 NORTH, RANGE 10, EAST OF THE THIRD PRINCIPAL MERIDIAN, BOUNDED BY A LINE DESCRIBED AS FOLLOWS: BEGINNING AT A POINT 12.91 CHAINS WEST AND 1.64 CHAINS NORTH OF THE SOUTHEAST CORNER OF THE SOUTHWEST QUARTER OF SAID SECTION 11; THENCE NORTH 9.86 CHAINS; THENCE WEST 9.43 CHAINS; THENCE NORTH 713.38 FEET; THENCE EAST 27.84 CHAINS TO A POINT 363 FEET EAST OF THE WEST LINE OF SAID SOUTHEAST QUARTER OF SAID SECTION 11; THENCE NORTH 1174 FEET TO THE NORTH LINE OF THE SOUTHEAST QUARTER OF SAID SECTION 11; THENCE EAST ALONG THE NORTH LINE OF SAID SOUTHEAST QUARTER OF SECTION 11, 865.5 FEET TO THE CENTER LINE OF STATE ROAD NO. 83; THENCE SOUTHERLY ALONG THE CENTER OF STATE ROAD NO. 83, 2460 FEET, MORE OR LESS, TO THE CENTER OF A PUBLIC ROAD (THE INTERSECTION OF THE CENTER LINE OF SAID PUBLIC ROAD AND THE CENTER LINE OF SAID STATE ROAD NO. 83 BEING 362.6 FEET NORTH AND 266.1 FEET EAST OF THE SOUTHWEST CORNER OF SAID SOUTHEAST QUARTER OF SECTION 11); THENCE SOUTH 77 DEGREES 53 MINUTES WEST, 1142.6 FEET TO THE POINT OF BEGINNING, (EXCEPT THAT PART CONVEYED IN WARRANTY DEED TO THE PEOPLE OF THE STATE OF ILLINOIS, DEPARTMENT OF TRANSPORTATION RECORDED MARCH 6, 2014 AS DOCUMENT 7082097), AND (EXCEPT THAT PART CONVEYED TO THE COUNTY OF LAKE IN FINAL JUDGEMENT ORDER FOR CASE NO 22 ED 22 FILED JANUARY 30, 2024), ALL IN LAKE COUNTY, ILLINOIS.

PARCEL 12: THAT PART OF THE SOUTHWEST QUARTER OF SECTION 11, TOWNSHIP 44 NORTH, RANGE 10, EAST OF THE THIRD PRINCIPAL MERIDIAN DESCRIBED AS FOLLOWS: BEGINNING AT A POINT 12.91 CHAINS WEST AND 11.50 CHAINS NORTH OF THE SOUTHEAST CORNER OF THE SOUTHWEST QUARTER OF SAID SECTION 11; THENCE WEST TO A POINT THAT IS 22.34 CHAINS WEST OF THE EAST LINE OF SAID SECTION; THENCE SOUTH TO A POINT THAT IS 30 CHAINS SOUTH OF THE NORTH LINE OF SAID QUARTER SECTION; THENCE EAST TO A POINT DUE SOUTH OF THE POINT OF BEGINNING AND THENCE NORTH TO THE POINT OF BEGINNING, IN LAKE COUNTY, ILLINOIS.

PARCEL 13: THE WEST 660.0 FEET OF THE SOUTH 660.0 FEET OF THE SOUTHWEST QUARTER OF SECTION 11, TOWNSHIP 44 NORTH, RANGE 10, EAST OF THE THIRD PRINCIPAL MERIDIAN, IN LAKE COUNTY, ILLINOIS.

PARCEL 15: THAT PART OF THE SOUTH HALF OF SECTION 11, TOWNSHIP 44 NORTH, RANGE 10, EAST OF THE THIRD PRINCIPAL MERIDIAN, DESCRIBED AS FOLLOWS: BEGINNING AT A POINT 12.91 CHAINS WEST AND 1.64 CHAINS NORTH OF THE SOUTHEAST CORNER OF THE SOUTHWEST QUARTER OF SAID SECTION 11; THENCE NORTH 9.86 CHAINS; THENCE WEST 9.43 CHAINS; THENCE NORTH 713.38 FEET TO THE SOUTHWEST CORNER AND POINT OF BEGINNING OF THE DESCRIPTION; THENCE EAST 27.84 CHAINS TO A POINT 363.0 FEET EAST OF THE WEST LINE OF THE SOUTHEAST QUARTER OF SAID SECTION 11; THENCE NORTH PARALLEL WITH THE WEST LINE OF SAID SOUTHEAST QUARTER, 1174 FEET MORE OR LESS TO THE NORTH LINE THEREOF; THENCE WEST ALONG THE NORTH LINE OF THE SOUTHEAST QUARTER AND THE NORTH LINE OF THE SOUTHWEST QUARTER OF SAID SECTION 11, A DISTANCE OF 1837.44 FEET; THENCE SOUTH TO THE POINT OF BEGINNING (EXCEPT THE NORTH 40 FEET OF THE WEST 5 CHAINS OF THE SOUTHEAST QUARTER OF SECTION 11, AND THE NORTH 40 FEET OF THE EAST 22.34 CHAINS OF THE SOUTHWEST QUARTER OF SECTION 11, BOTH HERETOFORE DEDICATED FOR PUBLIC ROAD PURPOSES BY DOCUMENT 761162, RECORDED JUNE 23, 1952 AND ALSO EXCEPT THE NORTH 40 FEET OF THE EAST 33 FEET OF THE WEST 363 FEET OF THE NORTHWEST QUARTER OF THE SOUTHEAST QUARTER OF SAID SECTION 11, HERETOFORE DEDICATED FOR PUBLIC ROAD PURPOSES BY DOCUMENT 761163, RECORDED JUNE 23, 1952 AND ALSO EXCEPT THAT PART CONTAINED IN WARRANTY DEED TO THE PEOPLE OF THE STATE OF ILLINOIS, DEPARTMENT OF TRANSPORTATION RECORDED MARCH 6, 2014 AS DOCUMENT 7082097), IN LAKE COUNTY, ILLINOIS.

P.I.N.:

10-11-300-003 (PART OF PARCEL 10)

10-11-300-004 (PARCEL 12)

10-11-300-005 (PART OF PARCEL 9)

10-11-300-008 (PARCEL 13)

10-11-300-010 (PART OF PARCEL 15)

10-11-300-012 (PART OF PARCEL 9)

10-11-400-040 (PART OF PARCEL 15)

10-11-400-041 (PART OF PARCEL 15)

10-11-400-043 (PART OF PARCEL 10)

EXHIBIT B



- T5@CHICAGO IV - THIRD CAMPUS PLAN NOTES:**
- CORNERSTONE PATTERN BOOK STANDARDS TO APPLY.
 - SCREENING WALLS AROUND THE EQUIPMENT YARD TO BE ARCHITECTURALLY COMPATIBLE WITH THE BUILDING AND OF SUFFICIENT HEIGHT TO ADEQUATELY SCREEN EQUIPMENT (NOT TO EXCEED 20') FROM PUBLIC ROADWAYS AND VIEWPOINTS.
 - MX ZONING STANDARDS TO APPLY UNLESS VARIED IN THE PUD AGREEMENT.
 - THE BUILDING CONFIGURATION, SIZE, AND NUMBER MAY VARY BUT THE TOTAL SQUARE FOOTAGE SHALL NOT EXCEED 4,410,000 SF.
 - 8' TALL SECURITY FENCING MAY BE INSTALLED AROUND EACH SITE OR ENTIRE SITE.
 - PRIVATE DRIVEWAY TO BE DESIGNED FOR ALL EMERGENCY VEHICLES TO BE ABLE TO ACCESS THE PROPERTY AND MANEUVER WITHIN THE PROPERTY
 - THE LAYOUT OF THE DETENTION PONDS MAY VARY BASED ON FINAL SITE GRADING AND APPLICABLE ENGINEERING.
 - THE SCREENING WALLS AROUND THE SUBSTATION AND SWITCHYARDS TO BE NO LESS THAN 10' IN HEIGHT AND AS TALL AS COMED WILL PERMIT, NOT TO EXCEED 20', LANDSCAPE SCREENING THAT MEETS THE CORNERSTONE PATTERN BOOK STANDARDS IS TO BE INSTALLED AROUND THESE SCREENING WALLS.
 - ALL DETENTION PONDS SHALL BE DESIGNED AND LANDSCAPED SIMILARLY TO THE OTHERS IN CORNERSTONE BUSINESS PARK.
 - THE DETENTION PONDS DESIGN TO BE AESTHETICALLY APPEALING AND REVIEWED AND APPROVED BY THE VILLAGE.
 - MAINTENANCE OF THE PRIVATE ACCESS DRIVE AND DETENTION PONDS ARE TO BE ASSIGNED TO SPECIFIC LOTS.
 - SLIVER LOTS TO BE COMBINED INTO ZONING LOTS THAT MEET DEVELOPMENT STANDARDS WITH EACH LOT HAVING ACCESS TO A PUBLIC ROAD DIRECTLY OR THROUGH AN ACCESS EASEMENT.
 - ALL EASEMENTS FOR WATER, SANITARY, AND ROADWAY/DRIVEWAY SHALL BE LOCATED OUTSIDE THE SECURITY FENCING FOR THE DEVELOPMENT.
 - CROSS ACCESS EASEMENTS TO BE INCLUDED ACROSS ALL ROADWAYS/DRIVEWAYS.
 - A 20' SETBACK FROM THE EXISTING IL ROUTE 83 R.O.W. TO BE PROVIDED TO ACCOMMODATE ANY FUTURE WIDENING IF REQUESTED BY IDOT.
 - HEARTLAND SETTLEMENT AGREEMENT REQUIREMENTS TO BE MET FOR THE PORTION OF THE SITE THAT IS SUBJECT TO THE AGREEMENT.
 - A 30' WATER AND SEWER EASEMENT SHALL BE ESTABLISHED ALONG THE PRIVATE DRIVEWAY, EXTENDING FROM IL ROUTE 83 TO THE EAST AND CORNERSTONE PARKWAY TO THE WEST. SAID EASEMENT SHALL REMAIN FREE OF ALL LANDSCAPING, FENCING, OR ANY OTHER IMPEDIMENTS. THE PROPERTY OWNER IS RESPONSIBLE FOR ANY PAVEMENTS REPAIRS RESULTING FROM EXCAVATION OF THE PRIVATE DRIVEWAY REQUIRED FOR THE VILLAGE TO ACCESS THE SEWER AND WATER MAINS.
 - THE DEVELOPER SHALL BUILD THE ROAD SYSTEM AS DEPICTED AND DEDICATE THE PUBLIC ROADS, INCLUDING THE WINCHESTER ROAD EXTENSION TO THE VILLAGE. IF REQUESTED BY LCDOT THE WINCHESTER ROAD EXTENSION SHALL BE BUILT TO THEIR STANDARDS AND DEDICATED TO LCDOT INSTEAD OF THE VILLAGE.
 - WINCHESTER ROAD ROW TO BE A MINIMUM OF 110 FT.

EXHIBIT C

Heartland Site Plan

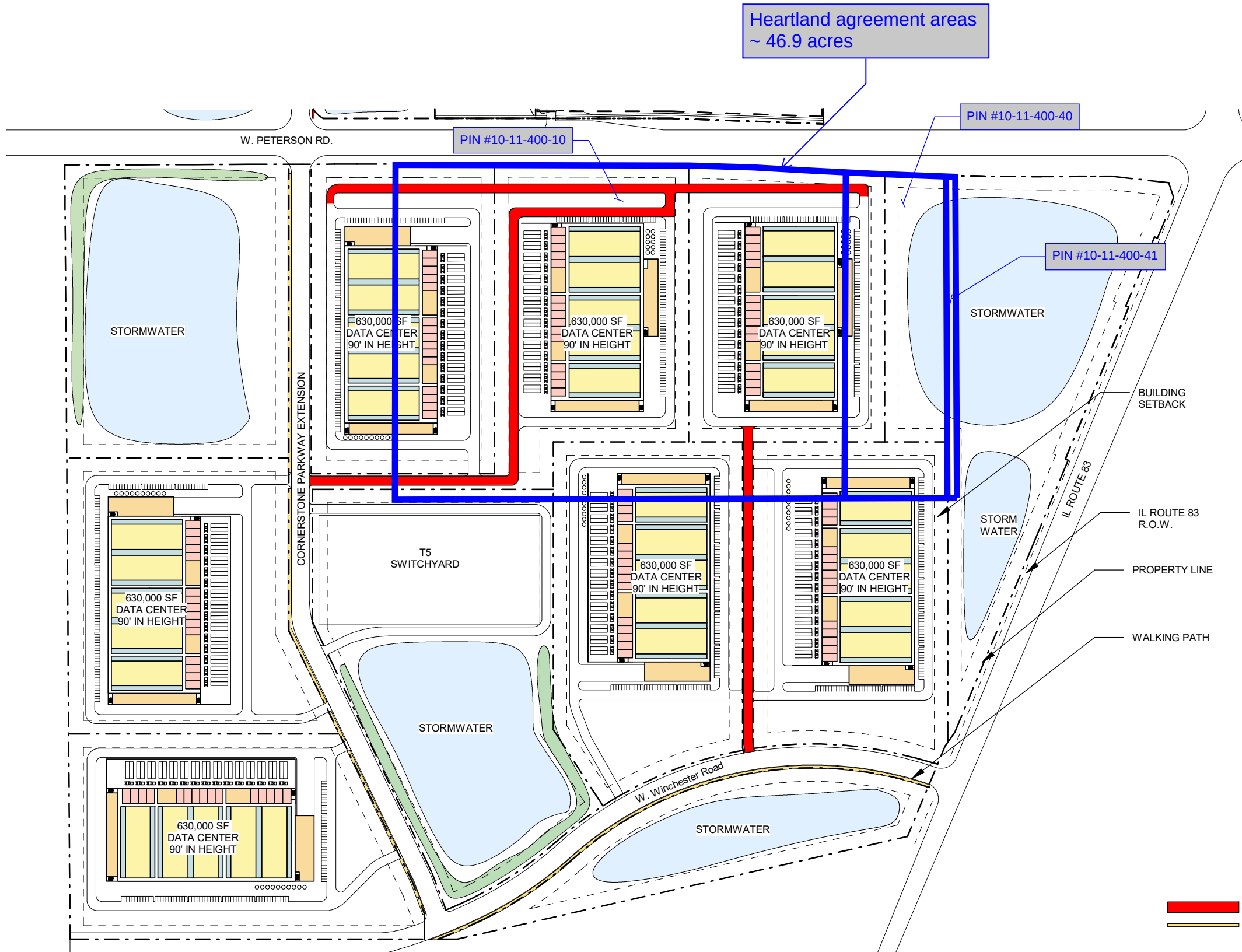


EXHIBIT D



Lake County Central Permit Facility
500 West Winchester Road
Libertyville, Illinois 60048-1331
Phone: 847.377.2600
E-mail lcpermits@lakecountyil.gov

April 24, 2025

To: Mary Otto, Planner/Development Coordinator
Village of Grayslake

Re: Heartland Agreement Zoning Verification
Data Center Campus Use

The Village of Grayslake has provided detailed information to the Lake County Planning, Building and Development Department (PBD) to review a use proposal for a data center, in consideration of the allowable uses per the Heartland Agreement and Lake County's 1986 zoning standards.

In this instance, only a portion of the entire development is subject to the Agreement. The site in question is the Cornerstone South Parcel, part of the larger Cornerstone PUD, located at the southwest corner of IL Route 83 and Peterson Road within the Central Range of the Heartland Agreement. The overall site is approximately 184 acres, with about 46.9 acres (just over 25%) falling under the Heartland Settlement Agreement. As less than 50% of the data center campus lies within the Heartland area, the Village of Grayslake will handle plan review and permitting for the entire development.

The Heartland portion includes:

- PIN #10-11-300-010 | 37.82 acres
- PIN #10-11-400-040 | 8.26 acres
- PIN #10-11-400-041 | 0.82 acres
- Total: 46.9 acres
- Common Address: 0 W. Peterson Road, Grayslake, IL 60030
- Owner: Lake County Land Holdings, LLC

The Central Range area of the Heartland Agreement area was zoned Neighborhood Conservation/Suburban Estate (NC/SE) in accordance with the 1986 Lake County Zoning Ordinance. Per the Heartland agreement, it was contemplated the area could be rezoned to Suburban Estate (SE). However, according to a 2005 Intergovernmental Agreement between the Village of Grayslake and Lake County regarding the Central Range area of the Heartland Property, the "area may be developed for non-residential purposes in accordance with the planned development (PUD) regulations set forth in in the County Zoning Ordinance" that was in effect at the time of the Settlement agreement (1986).

As such, within the Central Range area, a nonresidential use or mix of nonresidential uses may be approved within a PUD, provided that only those nonresidential uses that are comparable to those allowed at the time of the Settlement agreement would be permitted. These include any uses that would have at the time been permitted in the NC/AG, NC/E, NC/SE, NC/SR, all NC/UR zones, NC/CB (community business) and NC/OR (office research) zones. Some uses that were allowed in the NC/OR zone and which are comparable with the current proposed uses include: scientific research laboratory including but not limited to pure research; product development; pilot plants, research manufacturing facilities; offices; and medical laboratories.

Therefore, provided the project is designed and constructed in accordance with density, dimensional and other land use regulations as set forth in the Village's final PUD for the Cornerstone project, it is the County's position that the proposed use of a data center, office, or certain other limited industrial uses would meet both the requirements of the Heartland Agreement and the requirements of the 1986 Lake County Zoning Ordinance.

In addition to the 2005 IGA, there are further considerations that may be applicable for the subject property via a 2009 Intergovernmental Agreement between the County and the Village which stipulates that the County and the Village agree to a Central Lake County Area Transportation Improvement Intergovernmental Agreement. Any access to Peterson Road would be subject to approval by the Lake County Division of Transportation per the Lake County Highway Access and Use Ordinance and the adoption of the May 1987 order that established this portion of Peterson Road as a Freeway. Please note the County is open to discuss this item at a mutually convenient time.

EXHIBIT E









EXHIBIT G

GENERAL NOTES:

- LANDSCAPE SCREENING THAT MEETS THE CORNERSTONE PATTERNBOOK STANDARDS IS TO BE INSTALLED AROUND THE SCREENING WALL FOR THE SUBSTATION AND SWITCH YARDS.
- THE SCREENING WALLS SHALL BE AT A HEIGHT TO SUBSTANTIALLY SCREEN THE SUBSTATION AND SWITCH YARDS



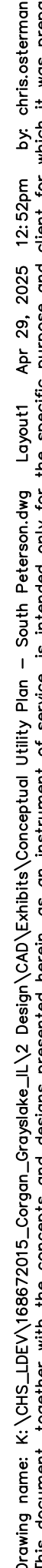


EXHIBIT I
FORM OF PERFORMANCE AND PAYMENT BOND
VILLAGE OF GRAYSLAKE
SUBDIVISION PERFORMANCE BOND

KNOW ALL MEN BY THESE PRESENTS: that **[DEVELOPER]**, of **[DEVELOPER ADDRESS]**, as Principal, hereinafter called Contractor, and **[FULL NAME AND ADDRESS OF SURETY]**, as Surety, a corporation organized and existing under the laws of the State of **[INCORPORATION]**, hereinafter called Surety, are held and firmly bound unto the Village of Grayslake, as Obligee, hereinafter called the Village, in the full and just sum of **[REQUIRED AMOUNT]** Dollars (\$**[REQUIRED AMOUNT]**), for the payment of which sum of money well and truly to be made, Contractor and Surety bind themselves, their heirs, executors, administrators, successors, and assigns, jointly and severally, firmly by these presents, said amount to include payment of actual costs and damages and for attorneys' fees, architectural fees, design fees, engineering fees, accounting fees, testing fees, consulting fees, administrative costs, court costs, interest, and any other fees and expenses resulting from or incurred by reason of Contractor's failure to promptly and faithfully perform its contract with Village, said contract being more fully described below, and to include attorneys' fees, court costs, and administrative and other expenses necessarily paid or incurred in successfully enforcing performance of the obligation of Surety under this bond.

WHEREAS, the Village has approved a Development Agreement between **[DEVELOPER]** and the Village, as well as Ordinance No. _____, approving a final plat of subdivision/planned unit development for certain real property in the Village of Grayslake (collectively "**Development Agreement**"), by and pursuant to which Contractor has the obligation to construct and install certain improvements ("**Improvements**") for the development of such subdivision/ planned unit development ("**Property**"), the terms and conditions of which the Development Agreement are by this reference incorporated herein as though fully set forth herein.

NOW, THEREFORE, THE CONDITION OF THIS OBLIGATION IS SUCH THAT if Contractor shall well, truly, and promptly perform all the undertakings, covenants, terms, conditions and agreements of said Contractor under the Development Agreement relating to the construction of the Improvements described therein, including, but not limited to, Contractor's obligations under the Development Agreement: (1) to provide, perform, and complete at the Property and in the manner specified in the Development Agreement all necessary work, labor, services, transportation, equipment, materials, apparatus, machinery, tools, fuels, gas, electric, water, waste disposal, information, data, and other means and items necessary for the construction, installation, and completion of the Improvements required in the Development Agreement; (2) to procure and furnish all permits, licenses, and other governmental approvals and authorizations necessary in connection therewith; (3) to pay all applicable federal, state, and local taxes; (4) to do all other things required of Contractor by the Development Agreement; and (5) to provide, perform, and complete all of the foregoing in a proper and workmanlike manner and in full compliance with, and as required by and pursuant to, the Development Agreement; all of which is herein referred to as the "**Work**," whether or not any of said Work enter into and become component parts of the improvement contemplated, then this obligation shall be null and void; otherwise it shall remain in full force and effect.

Surety, for value received, hereby stipulates and agrees that no changes, modifications, alterations, omissions, deletions, additions, extensions of time, or forbearances on the part of either Village or Contractor to the other in or to the terms of the Development Agreement; in or to the schedules, plans, drawings, or specifications; in or to the method or manner of performance of the Work; in or to the mode or manner of payment therefor; or in or to Village-furnished facilities, equipment, material, service, or sites; shall in any way release Contractor and Surety or either or any of them, or any of their heirs, executors, administrators, successors, or assigns or affect the obligations of Surety on this bond, all notice of any and all of the foregoing changes, modifications, alterations, omissions, deletions, additions, extensions of time, or forbearances, and notice of any and all defaults by Contractor being hereby waived by Surety.

Notwithstanding anything to the contrary in the foregoing paragraph, in no event shall the obligations of Surety under this bond in the event of Contractor's default be greater than the obligations of Contractor under the Development Agreement in the absence of such Contractor default.

In the event of a default or defaults by Contractor, Village shall have the right to take over and complete the Contractor's obligations under the Development Agreement upon 30 calendar days' written notice to Surety, in which event Surety shall pay Village all costs incurred by Village in taking over and completing the Development Agreement.

At its option, Village may instead request that Surety take over and complete the Contractor's obligations under the Development Agreement, in which event Surety shall take reasonable steps to proceed promptly with completion no later than 30 calendar days from the date on which Village notifies Surety that Village wants Surety to take over and complete the Contractor's obligations under the Development Agreement.

Village shall have no obligation to actually incur any expense or correct any deficient performance of Contractor in order to be entitled to receive the proceeds of this bond.

No right of action shall accrue on this bond to or for the use of any person or corporation other than Village or the heirs, executors, administrators, or successors of Village.

Signed and sealed this ____ day of _____, 20____.

Attest/Witness:

PRINCIPAL: _____

By: _____

By: _____

***[NAME OF CONTRACTOR'S
EXECUTING OFFICER]***

Title: _____

Title: ***[TITLE OF CONTRACTOR'S
EXECUTING OFFICER]***

Attest/Witness:

SURETY: ***[NAME OF SURETY]***

By: _____

By: _____

Title: _____

Title: _____

Telephone: _____

**FORM OF
SUBDIVISION LABOR AND MATERIAL PAYMENT BOND**

KNOW ALL MEN BY THESE PRESENTS: that **[DEVELOPER]**, of **[DEVELOPER'S ADDRESS]**, as Principal, hereinafter called Contractor, and **[FULL NAME AND ADDRESS OF SURETY]**, as Surety, a corporation organized and existing under the laws of the State of **[INCORPORATION]**, hereinafter called Surety, are held and firmly bound unto the Village of Grayslake, as Obligee, hereinafter called the Village, for the use and benefit of itself and of claimants as hereinafter defined, in the full and just sum of **[REQUIRED AMOUNT]** Dollars (**[\$REQUIRED AMOUNT]**), to be paid to it or the said claimants or its or their assigns, to which payment well and truly to be made Contractor and Surety bind themselves, their heirs, executors, administrators, successors, and assigns, jointly and severally, firmly by these presents, said amount to include attorney's fees, court costs, and administrative and other expenses necessarily paid or incurred in successfully enforcing performance of the obligation of Surety under this bond.

WHEREAS, the Village has approved an Agreement of Conditions and Specifications for a Special Use Permit for Cornerstone Property between **[DEVELOPER]** and the Village, as well as Ordinance No. _____, approving a final plat of subdivision/planned unit development for certain real property in the Village of Grayslake ("**Development Agreement**"), by and pursuant to which Contractor has the obligation to construct and install certain improvements ("**Improvements**") for the development of such subdivision/planned unit development ("**Property**"), the terms and conditions of which Development Agreement are by this reference incorporated herein as though fully set forth herein.

NOW, THEREFORE, THE CONDITION OF THIS OBLIGATION IS SUCH THAT if Contractor shall promptly pay or cause to be paid all sums of money that may be due to any claimant with respect to Contractor's obligations under the Development Agreement: (1) to provide, perform and complete at the Property and in the manner specified in the Development Agreement all necessary work, labor, services, transportation, equipment, materials, apparatus, machinery, tools, fuels, gas, electric, water, waste disposal, information, data, and other means and items necessary for the construction, installation, and completion of the Improvements required in the Development Agreement; (2) to procure and furnish all permits, licenses, and other governmental approvals, and authorizations necessary in connection therewith; (3) to pay all applicable federal, state, and local taxes; (4) to do all other things required of Contractor by the Development Agreement; and (5) to provide, perform, and complete all of the foregoing in a proper and workmanlike manner and in full compliance with, and as required by and pursuant to, the Development Agreement; all of which is herein referred to as the "**Work**," whether or not any of said Work enter into and become component parts of the improvement contemplated, then this obligation shall be null and void; otherwise it shall remain in full force and effect.

For purpose of this bond, a claimant is defined as one having a direct contract with Contractor or with a subcontractor of Contractor to provide, perform, or complete any part of the Work.

Contractor and Surety hereby jointly and severally agree that every claimant who has not had all just claims for the furnishing of any part of the Work paid in full, including, without limitation, all claims for amounts due for materials, lubricants, oil, gasoline, rentals of or service or repairs on machinery, equipment, and tools consumed or used in connection with the furnishing of any part of the Work, may sue on this bond for the use of such claimant, may prosecute the suit to final judgment for such sum or sums as may be justly due such claimant, and may have

execution therein; provided, however, that Village shall not be liable for the payment of any costs or expenses of any such suit. To the extent applicable, the provisions of 30 ILCS 550/1 and 30 ILCS 550/2 shall be deemed inserted herein, including the time limits within which notices of claim must be filed and actions brought under this bond.

Contractor and Surety hereby jointly agree that Village may sue on this bond if Village is held liable to, or voluntarily agrees to pay, any claimant directly, but nothing in this bond shall create any duty on the part of Village to pay any claimant.

Surety, for value received, hereby stipulates and agrees that no changes, modifications, alterations, omissions, deletions, additions, extensions of time, or forbearances on the part of Village or Contractor to the other in or to the terms of the Development Agreement; in or to the schedules, plans, drawings, or specifications; in or to the method or manner of performance of the Work; in or to Village-furnished facilities, equipment, material, service, or site; or in or to the mode or manner of payment therefor shall in any way release Contractor and Surety or either or any of them, or any of their heirs, executors, administrators, successors, or assigns, or affect the obligations of said Surety on this bond, all notice of any and all of the foregoing changes, modifications, alterations, omissions, deletions, additions, extensions of time, or forbearances and notice of any and all defaults by Contractor or of Village's termination of Contractor being hereby waived by Surety.

Signed and sealed this ____ day of _____, 20__.

Attest/Witness:

PRINCIPAL: _____

By: _____

By: _____

***[NAME OF CONTRACTOR'S
EXECUTING OFFICER]***

Title: _____

Title: ***[TITLE OF CONTRACTOR'S
EXECUTING OFFICER]***

Attest/Witness:

SURETY: ***[NAME OF SURETY]***

By: _____

By: _____

Title: _____

Title: _____

Telephone: _____

EXHIBIT J

FORM OF IRREVOCABLE LETTER OF CREDIT

IRREVOCABLE LETTER OF CREDIT NO. _____ AMOUNT: _____

EXPIRATION DATE: _____ DATE OF ISSUE: _____

[Name of Bank]

[Address]

TO: The Village of Grayslake
Ten South Seymour
Grayslake, Illinois 60030
Attention: Village Manager

WE HEREBY AUTHORIZE YOU TO DRAW AT SIGHT on the _____
_____ UP TO AN AGGREGATE AMOUNT OF
_____ United States Dollars (\$_____) for account of
_____ ("**Customer**").

Drafts under this Letter of Credit shall bear upon their face the words:

Drawn under _____
Credit No. _____ Dated: _____

and shall be in the form attached hereto as Exhibit "A" and shall be accompanied by one of the following documents executed by the Village Manager or his or her designee:

(a) A written statement on the form attached hereto as Exhibit "B" stating that, conditioned upon proper notice to the Village Manager, Letter of Credit No. _____ will expire within 35 days or less and that the Customer has failed to deliver to the Grayslake Village Manager evidence of a renewal of Letter of Credit No. _____; or

(b) A written statement on the form attached hereto as Exhibit "C" stating that all or any part of the Property Improvements to be constructed pursuant to the Agreement of Conditions and Specifications for _____, dated _____, by and between the Village of Grayslake and **[DEVELOPER]** ("**Development Agreement**") have not been constructed in accordance with the Development Agreement; or

(c) A written statement on the form attached hereto as Exhibit "D" stating that all or any part of the costs, payments, permit fees or other fees required to be paid to the Village

pursuant to the Development Agreement have not been paid in accordance with the Development Agreement; or

(d) A written statement on the form attached hereto as Exhibit "E" stating that all or any portion of the maintenance, repair, or restoration required to be performed pursuant to the Development Agreement has not been performed in accordance with the Development Agreement; or

(e) A written statement on the form attached hereto as Exhibit "F" stating that the funds remaining in this Letter of Credit are insufficient to pay in full (i) the remaining unpaid cost of all improvements to be performed pursuant to the Development Agreement, (ii) the costs of demolition or making safe of any buildings and structures identified in the Development Agreement that are in violation of any applicable federal, state, county, local governmental, or Village law, statute, code, ordinance, resolution, rule, or regulation, or that are incomplete or abandoned so as to create any hazard to the public health, safety, or welfare, and (iii) all unpaid Village fees, costs, and expenses incurred or to be incurred, and that, within ten days of demand by the Village, the Customer has failed to increase the amount of this Letter of Credit to an amount reasonably determined by the Village to be sufficient to pay such unpaid fees, costs and expenses; or

(f) A written statement on the form attached hereto as Exhibit "G" stating that the funds remaining in the Letter of Credit which the Customer is required to deposit with the Village pursuant to the Development Agreement are not reasonably sufficient to pay all unpaid costs of correcting any and all defects and deficiencies in the improvements to be performed pursuant to the Development Agreement and all related unpaid Village fees, costs, and expenses incurred or to be incurred, and that, within ten days of demand by the Village, the Customer has failed to increase the amount of the Letter of Credit to an amount reasonably determined by the Village to be sufficient to pay such unpaid fees, costs and expenses; or

(g) A written statement on the form attached hereto as Exhibit "H" stating that the Village has demanded, and the Customer has failed to provide, a replacement to this Letter of Credit as required pursuant to the Development Agreement; or

(h) A written statement on the form attached hereto as Exhibit "I" stating that all or any portion of the Customer's undertakings pursuant to the Development Agreement have not been performed in accordance with the Development Agreement.

EXCEPT AS EXPRESSLY PROVIDED OTHERWISE IN THIS LETTER OF CREDIT, THIS LETTER OF CREDIT IS SUBJECT TO THE "UNIFORM CUSTOMS AND PRACTICE FOR DOCUMENTARY CREDITS 1993 REVISION, INTERNATIONAL CHAMBER OF COMMERCE BROCHURE NO. 500" (THE "UNIFORM RULES"). IN THE EVENT OF A CONFLICT BETWEEN THIS LETTER OF CREDIT AND THE UNIFORM RULES, THIS LETTER OF CREDIT SHALL CONTROL.

WE HEREBY AGREE with the drawers of drafts drawn under and in compliance with the terms of this Letter of Credit, that:

1. Drafts drawn under and in compliance with this Letter of Credit shall be duly honored immediately upon presentation to the drawees if presented on or before the above-stated Expiration Date or presented at our office together with the original of this Letter of Credit on or before that date.

2. The amount of any draft drawn under this Letter of Credit must be endorsed on the reverse hereof by our bank.

3. If, within three business days after any draft drawn under this Letter of Credit is presented to us in conformance with the terms of this Letter of Credit, we fail to honor same, we agree to pay all attorneys' fees, court costs and other expenses incurred by the Village of Grayslake in enforcing the terms hereof.

4. This Letter of Credit shall expire on _____, 20____, as stated hereinabove; provided, however, that we shall notify the Village Manager by certified mail, return receipt requested, at least 35 days, but not more than 90 days, prior to said expiration date, that this Letter of Credit is about to expire.

5. In no event shall this Letter of Credit or the obligations contained herein expire except upon the prior written notice required herein, it being expressly agreed that the above expiration date shall be extended as shall be required to comply with the prior written notice required herein.

6. No consent, acknowledgment, or approval of any kind from the Customer shall be necessary or required prior to honoring any draft presented in conformance with the terms of this Letter of Credit.

7. The aggregate amount of this Letter of Credit may be reduced only upon receipt by us of a document executed by the Village Manager stating that such aggregate amount shall be reduced in an amount permitted by the Grayslake Subdivision Ordinance because of the satisfactory completion of all or part of the Property Improvements required to be constructed pursuant to the Development Agreement.

8. This Letter of Credit shall not be canceled without the prior written consent of the Village.

9. If at any time this Letter of Credit will expire within 35 days or less, and if it has not been renewed, and if any obligation of the Customer for which it is security remains uncompleted or unsatisfactory, then the Village may, without notice and without being required to take any further action of any nature whatsoever, call and draw down this Letter of Credit and thereafter either hold all proceeds as security for the satisfactory completion of all obligations or employ the proceeds to complete all obligations and to reimburse the Village for any and all costs and expenses, including reasonable legal fees and administrative costs, incurred by the Village, as the Village shall determine.

10. This Letter of Credit is irrevocable.

[Signature of Bank Officer]

[Signature of Bank Officer]

[Officer' s Title]

[Officer' s Title]

EXHIBIT "A" TO FORM OF IRREVOCABLE LETTER OF CREDIT

FORM OF DRAFT

[To Be Supplied By Issuing Bank]

EXHIBIT "B" TO FORM OF IRREVOCABLE LETTER OF CREDIT

To:
Attn:

Re: Letter of Credit No. _____

Ladies and Gentlemen:

This is to advise you that Letter of Credit No. _____ dated
_____ in the amount of \$_____ will expire within 35 days or
less and that _____ has failed to deliver to the Grayslake Village
Manager evidence of a renewal of Letter of Credit No. _____.

Very truly yours,

Village Manager

EXHIBIT "C" TO FORM OF IRREVOCABLE LETTER OF CREDIT

To:
Attn:

Re: Letter of Credit No. _____

Ladies and Gentlemen:

This is to advise you that all or any part of the Improvements to be constructed pursuant to the Development Agreement by and between the Village of Grayslake and **[DEVELOPER]**, dated _____. have not been constructed in accordance with said agreement.

Very truly yours,

Village Manager

EXHIBIT "D" TO FORM OF IRREVOCABLE LETTER OF CREDIT

To:
Attn:

Re: Letter of Credit No. _____

Ladies and Gentlemen:

This is to advise you that all or any part of the costs, payments, permit fees, or other fees required to be paid pursuant to the Development Agreement by and between the Village of Grayslake and **[DEVELOPER]**, dated _____, have not been paid in accordance with said agreement.

Very truly yours,

Village Manager

EXHIBIT "E" TO FORM OF IRREVOCABLE LETTER OF CREDIT

To:
Attn:

Re: Letter of Credit No. _____

Ladies and Gentlemen:

This is to advise you that all or any part of the maintenance, repair, or restoration required to be performed pursuant to the Development Agreement by and between the Village of Grayslake and **[DEVELOPER]**, dated _____, have not been performed in accordance with said agreement.

Very truly yours,

Village Manager

EXHIBIT " F" TO FORM OF IRREVOCABLE LETTER OF CREDIT

To:
Attn:

Re: Letter of Credit No. _____

Ladies and Gentlemen:

This is to advise you that the funds remaining in this Letter of Credit are insufficient to pay in full (i) the remaining unpaid cost of all improvements to be performed pursuant to the Development Agreement by and between the Village of Grayslake and **[DEVELOPER]**, dated _____, (ii) the costs of demolition or making safe of any buildings and structures identified in the Development Agreement that are in violation of any applicable federal, state, county, local governmental, or Village law, statute, code, ordinance, resolution, rule, or regulation, or that are incomplete or abandoned so as to create any hazard to the public health, safety, or welfare, and (iii) all unpaid Village fees, costs, and expenses incurred or to be incurred, and that, within ten days of demand by the Village, the Customer (as that term is defined in the above-referenced Letter of Credit) has failed to increase the amount of this Letter of Credit to an amount reasonably determined by the Village to be sufficient to pay such unpaid fees, costs and expenses.

Very truly yours,

Village Manager

EXHIBIT "G" TO FORM OF IRREVOCABLE LETTER OF CREDIT

To:
Attn:

Re: Letter of Credit No. _____

Ladies and Gentlemen:

This is to advise you that the funds remaining in the Letter of Credit which the Customer (as that term is defined in the above-referenced Letter of Credit) is required to deposit with the Village pursuant to the Development Agreement by and between the Village of Grayslake and **[DEVELOPER]**, dated _____, are not reasonably sufficient to pay all unpaid costs of correcting any and all defects and deficiencies in the improvements required to be performed pursuant to the Development Agreement and all related unpaid Village fees, costs, and expenses incurred or to be incurred, and that, within ten days of demand by the Village, the Customer has failed to increase the amount of the Letter of Credit to an amount reasonably determined by the Village to be sufficient to pay such unpaid fees, costs and expenses.

Very truly yours,

Village Manager

EXHIBIT "H" TO FORM OF IRREVOCABLE LETTER OF CREDIT

To:
Attn:

Re: Letter of Credit No. _____

Ladies and Gentlemen:

This is to advise you that the Village has demanded, and the Customer (as that term is defined in the above-referenced Letter of Credit) has failed to provide, a replacement to this Letter of Credit as required pursuant to the Development Agreement by and between the Village of Grayslake and **[DEVELOPER]**, dated _____.

Very truly yours,

Village Manager

EXHIBIT "I" TO FORM OF IRREVOCABLE LETTER OF CREDIT

To:
Attn:

Re: Letter of Credit No. _____

Ladies and Gentlemen:

This is to advise you that all or any part of the undertakings of the Customer (as that term is defined in the above-referenced Letter of Credit) pursuant to the Development Agreement by and between the Village of Grayslake and **[DEVELOPER]**, dated _____, have not been performed in accordance with said agreement.

